

Panaji, 02nd April, 2026 (Chaitra 12, 1948)

SERIES II No. 1

OFFICIAL GAZETTE GOVERNMENT OF GOA

PUBLISHED BY AUTHORITY

Note: There are six Extraordinary issues to the Official Gazette, Series II No. 52 dated 27-3-2026 as follows:-

1. Extraordinary dated 27-3-2026 from pages 1859 to 1860 regarding Notification from Goa Legislature Secretariat.
2. Extraordinary (No. 2) dated 27-3-2026 from pages 1861 to 1864 regarding Notification from Office of the Chief Electoral Officer and Order from Department of Finance.
3. Extraordinary (No. 3) dated 27-3-2026 from pages 1865 to 1868 regarding Notification from Office of the Chief Electoral Officer.
4. Extraordinary (No. 4) dated 31-3-2026 from pages 1869 to 1870 regarding Order and Notification from State Election Commission, Goa.
5. Extraordinary (No. 5) dated 31-3-2026 from pages 1871 to 1872 regarding Notification from Department of Urban Development.
6. Extraordinary (No. 6) dated 01-4-2026 from pages 1873 to 1874 regarding Notification from Department of Home.

GOVERNMENT OF GOA

Department of Agriculture

Directorate of Agriculture

Order

No. 1/22/160/2025-26/D.Agri/2263

Date : 31-Mar-2026

The Government is pleased to accept the notice of Voluntary Retirement from Government Service tendered vide application dated 22-01-2026 and 11-02-2026 in continuation, by Shri. Raghunath S. Morajkar, Assistant Director of Agriculture, Group 'A' Gazetted Officer of this Directorate, under Rule 43(1) of Central Civil Services (Pension) Rules, 2021 and curtailment of standard notice period upto 31st March, 2026 i.e. (69) sixty nine days under Rule 43(4) (a) and (b) from the date of serving the notice dated 22-01-2026.

Shri Raghunath S. Morajkar, Assistant Director of Agriculture shall stand relieved from Government Service w.e.f. 31-03-2026 (a.n.).

This is issued with the approval of the Government vide entry No. 12315/F dated 09-03-2026.

By order and in the name of the Governor of Goa.

Sandeep B. Fol Dessai, Director of Agriculture & ex officio Jt. Secretary.

Tonca, Caranzalem.

Department of Education

Directorate of Higher Education

Order

No. ACADIII/GC/FILLING OF POST-REGULAR/32/2023/7749

Date : 26-Nov-2025

Read:- Memorandum No. ACAD III/GC/Filling Of Post Regular/32/2023/5191 dated 05-09-2025.

On the recommendation of the Goa Public Service Commission as conveyed vide their letter No. COM/I/5/78(9)/2024/92 dated 03-07-2025, Government is pleased to appoint **Ms. Harshada Premanand Adel** to the post of **Assistant Professor in Chemistry (Organic)** (Group “A” Gazetted) in **OBC** Category at Government College of Arts, Science and Commerce, Khandola under Directorate of Higher Education on temporary basis in the UGC Pay Scale Matrix Level 10 with immediate effect, and as per the terms and conditions contained in the Memorandum cited above. She shall be on probation for a period of two years.

Ms. Harshada Premanand Adel has been declared medically fit by the Medical Board. The character and antecedents of Ms. Harshada Premanand Adel has been verified by the Deputy Collector & DRO South Goa and nothing adverse has been reported against her.

She shall draw her salary against the newly created post vide Order No. 1/5/2017-DHE/1024 dated 07-06-2018.

By order and in the name of the Governor of Goa.

Santosh P. Naik, Under Secretary (Higher Education).

Porvorim.

Order

No. ACADIII/GC/FILLING OF POST-REGULAR/32/2023/7750

Date : 26-Nov-2025

Read:- Memorandum No. ACAD III/GC/Filling Of Post Regular/32/2023/5191 dated 05-09-2025.

On the recommendation of the Goa Public Service Commission as conveyed vide their letter No. COM/I/5/78(2)/2024/127 dated 17-07-2025, Government is pleased to appoint **Ms. Ridhi Subhash Alornekar** to the post of **Assistant Professor in Physics** (Group “A” Gazetted) in **Unreserved** Category at Government College of Arts, Science and Commerce, Quepem under Directorate of Higher Education on temporary basis in the UGC Pay Scale Matrix Level 10 with immediate effect, and as per the terms and conditions contained in the Memorandum cited above. She shall be on probation for a period of two years.

Ms. Ridhi Subhash Alornekar has been declared medically fit by the Medical Board. The character and antecedents of Ms. Ridhi Subhash Alornekar has been verified by the Additional District Magistrate, North Goa and nothing adverse has been reported against her.

She shall draw her salary against the newly created post vide Order No. 1/5/2017-DHE/1024 dated 07-06-2018.

By order and in the name of the Governor of Goa.

Santosh P. Naik, Under Secretary (Higher Education).

Porvorim.

Order

No. ACADIII/GC/FILLING OF POST-REGULAR/32/2023/7800

Date : 27-Nov-2025

Read:- Memorandum No. ACAD III/GC/Filling Of Post Regular/32/2023/5191 dated 05-09-2025.

On the recommendation of the Goa Public Service Commission as conveyed vide their letter No. COM/I/5/78(9)/2024/92 dated 03-07-2025, Government is pleased to appoint Ms. Samata Eknath Shetgaonkar to the post of Assistant Professor in Chemistry (Organic) (Group “A” Gazetted) in UR Category at Government College of Arts, Science and Commerce, Khandola under Directorate of Higher Education on temporary basis in the UGC Pay Scale Matrix Level 10 with immediate effect, and as per the terms and conditions contained in the Memorandum cited above. She shall be on probation for a period of two years.

Ms. Samata Eknath Shetgaonkar has been declared medically fit by the Medical Board. The character and antecedents of Ms. Samata Eknath Shetgaonkar has been verified by the Additional District Magistrate North Goa and nothing adverse has been reported against her.

She shall draw her salary against the newly created post vide Order No. 1/5/2017-DHE/1024 dated 07-06-2018.

By order and in the name of the Governor of Goa.

Santosh P. Naik, Under Secretary (Higher Education).

Porvorim.

Order

No. ACADIII/GC/FILLING OF POST/53/2024/8816

Date : 08-Jan-2026

Read:- Memorandum No. ACAD III/GC/Filling Of Post/53/2024/5010 dated 02-09-2024.

On the recommendation of the Goa Public Service Commission as conveyed vide their letter No. COM/I/5/78(11)/2024/138 dated 23-07-2025, Government is pleased to appoint following candidates to the post of Assistant Professor in Commerce (Group “A” Gazetted) under Directorate of Higher Education on temporary basis in the UGC Pay Scale Matrix Level 10 with immediate effect, and as per the terms and conditions contained in the Memorandum cited above. They shall be on probation for a period of two years.

Sr. No.	Subject	Category	Name of the Candidate recommended by GPSC	Posted at
1	2	3	4	5
1	Commerce	UR	Lynessa Lynette Linson	Sant Sohirobanath Ambiye, Government College and Research Centre, Pernem
2			Edrea Picardo	
3		OBC	Nikita Uday Rivonker	Government College of Arts, Science and Commerce, Quepem

The above candidates are declared medically fit by the Medical Board. The character and antecedents of above candidates have been verified by the Additional District Magistrate, North Goa and Deputy Collector & DRO, South Goa respectively and nothing adverse has been reported against them.

They shall draw their salary against the newly created post vide Order No. 1/5/2017-DHE/1024 dated 07-06-2018.

By order and in the name of the Governor of Goa.

Santosh P. Naik, Under Secretary (Higher Education).

Porvorim.



Directorate of Technical Education, College Section

Order

No. 8/1/113/PF/SBNG/GCA/DTE/2025/3622

Date : 13-Feb-2026

Read:- Memorandum No. 8/34/86/EDN/Vol.IV/2269 dated 12-11-2025.

On the recommendations of the Goa Public Service Commission conveyed vide their letter No. COM/I/5/6(2)/2023/234 dated 01-10-2025, Government is pleased to appoint Shri. Siddesh Balaji Naique Gaunekar on temporary basis to the post of Assistant Professor in Fine Art (Applied Art) (Group ‘A’ Gazetted) at Goa College of Art, Altinho, Panaji-Goa, under General category on an initial pay at level 10 [i.e. on an initial pay of of Rs. 15,600/- (pre-revised) in the Pay Scale of Rs. 15,600-39,100 (pre-revised) + Academic Grade Pay of Rs. 6000/- (pre-revised)] w.e.f. the date of joining as per the terms & conditions contained in the Memorandum cited above.

The appointment is against the post of Smt. Sabita Prabhudesai, Assistant Professor in Fine Art (Applied Art) vacated with effect from 01-04-2023 due to superannuation.

Shri Siddesh Balaji Naique Gaunekar will be on probation for a period of two years.

He should join duties within 30 days of the receipt of this order, failing which this order is liable to be cancelled without further notice.

He has been declared fit by Medical Board, Goa Medical College & Hospital, Bambolim vide letter No. 4/105/85-H/GMC/2025/721 dated 02-12-2025. His character and antecedents have been verified and nothing adverse is reported against him as conveyed by the Additional Collector & Additional District Magistrate, North Goa, Office of the District Magistrate, North Goa, Magisterial Branch, Collectorate Bldg., Panaji, vide letter No. 2/6/2013-MAG/VCA/Vol.I/405 dated 03-02-2026.

By order and in the name of the Governor of Goa.

Bhushan K. Savaikar, Director of Technical Education/ex officio Addl. Secretary.

Porvorim.

Department of General Administration**Notification**

No. 2/2/2010-GAD-III/Vol.I/1405

Date : 01-Apr-2026

In pursuance to Section 135B of the Representation of the People Act, 1951 (Act 43 of 1951), the Government of Goa hereby declares Thursday, the 9th April, 2026 (Chaitra 19, Saka 1947) as a “Paid Holiday” being the “Polling Day” for the Bye-Election to 21—Ponda Assembly Constituency, to every person employed in any business, trade, industrial undertaking or any other establishment and entitled to vote at the aforesaid Bye-Election, throughout the State of Goa.

The aforesaid holiday shall be a “paid holiday”, in addition to the holidays indicated in the Notification No. 37/3/2025-GAD-III/4171 dated 30/09/2025 published in the Official Gazette, Series II No. 28 dated 09-10-2025 read with Corrigendum No. 37/8/2025-GAD-III/4282 dated 07-10-2025 and shall also be applicable as such to the following persons who are entitled to vote at the aforesaid Bye-Election:-

- (i) workers of all establishments including commercial and industrial undertakings in the State of Goa;
- (ii) daily wage/casual workers employed in any business, trade, industrial undertakings, Government departments, State Government Industrial Departments or any other establishment.

By order and in the name of the Governor of Goa.

Shreyas Dsilva, Under Secretary (GA-I).

Porvorim.

**Department of Home**

Home-General Division

Order

No. 2/63/2020-HD(G)/914

Date : 30-Mar-2026

In pursuance of the direction issued by the Hon’ble Supreme Court of India in Special Leave Petition (Criminal) No. 3543 of 2020 in the matter of Paramvir Singh Saini V/s Baljit Singh & Ors., the Government of Goa is pleased to constitute the District Level Oversight Committee Chaired by Secretary (Revenue) (hereinafter referred to as the “DLOC”) for Kushavati District as under:

- (i) Secretary, Revenue.
- (ii) District Magistrate, Kushavati.
- (iii) Superintendent of Police, Kushavati District.
- (iv) A Chairperson of a Municipality within the District/a Head of the Zilla Panchayat, in Rural areas as may be nominated by the Government from time to time.

The mandate of the committee shall be as follows:

- a) Supervision, maintenance and upkeep of CCTVs and its equipment; in various police station.
- b) To interact with the Police Inspector as to the functioning and maintenance of CCTVs and its equipment; and
- c) To send monthly reports to the SLOC about the functioning of CCTVs and allied equipment in various police stations.
- d) To review footage stored from CCTVs in the various Police Stations to check for any human rights violation that may have occurred but are not reported.

The DLOC shall ensure that the directions issued by the Hon’ble Supreme Court are complied with.

By order and in the name of the Governor of Goa.

Manthan Manoj Naik, Under Secretary (Home-I).

Porvorim.

Department of Labour**Order**

No. 28/03/2026-LAB/177

Date : 24-Mar-2026

Whereas, the Government of Goa is of the opinion that an industrial dispute exists between the management of M/s. Cipla Limited, Verna Industrial Estate, Verna-Goa and it's workman represented by Bhartiya Kamgar Sena, in respect of the matter specified in the Schedule hereto;

And whereas, the Government of Goa considers it expedient to refer the said dispute for adjudication.

Now, therefore, in exercise of the powers conferred by Clause (d) of sub-section (1) of Section 10 of the Industrial Disputes Act, 1947 (Central Act 14 of 1947), the Government of Goa hereby refers the said dispute for adjudication to the Industrial Tribunal of Goa at Panaji-Goa, constituted under Section 7A of the said Act.

SCHEDULE

- (1) Whether the Bhartiya Kamgar Sena Union has locus standi to raise Industrial Dispute in respect of alleged dismissal of services of Ms. Sakshi Santosh Palav, Management Staff-Production, on behalf of the workman before the management of M/s. Cipla Limited, Verna Industrial Estate, Verna, Salcete-Goa?
- (2) If answer to issue No. (1) above is in affirmative, then whether Ms. Sakshi Santosh Palav, Management Staff-Production, could be construed as workman as defined under Section 2 (s) of the Industrial Disputes Act, 1947?
- (3) If the answer to the issue No. (2) above is in affirmative, then whether the action of Management of M/s Cipla Limited, Verna Industrial Estate, Verna, Salcete-Goa, in dismissing the services of Ms. Sakshi Santosh Palav, Management Staff-Production, is legal and justified?
- (4) If answer to issue No. (3) above is in negative, then what relief the workman is entitled to?

By order and in the name of the Governor of Goa.

Amalia O. F. Pinto, Under Secretary (Labour).

Porvorim.

Notification

No. 28/02/2026-LAB/175

Date : 24-Mar-2026

The following Award passed by the Industrial Tribunal and Labour Court, at Panaji-Goa on 23-02-2026 in Case No. IT/13/2023 is hereby published as required under Section 17 of the Industrial Disputes Act, 1947 (Central Act 14 of 1947).

By order and in the name of the Governor of Goa.

Amalia O.F. Pinto, Under Secretary (Labour).

Porvorim.

**IN THE INDUSTRIAL TRIBUNAL AND LABOUR COURT
GOVERNMENT OF GOA AT PANAJI**

(Before Mrs. Vijayalaxmi Shivolkar, Hon'ble Presiding Officer)

Case No. IT/13/2023

Workmen, Rep. by General Secretary,
Gomantak Mazdoor Sangh,
G-5, Macedo Apartments,
Tisk, Ponda-Goa

... Workmen/Party I

V/s

M/s. Omni Impex Pvt. Limited,
Plot No. 64, 65, Pissurlem Industrial Estate,
Honda, Sattari-Goa

... Employer/Party II

Workman/Party I represented by Shri P. Gaonkar

Employer/Party II represented by Learned Advocate Shri. P. Chawdikar

AWARD

(Delivered on this the 23rd day of the month of February of the year, 2026)

By Order dated 27th September, 2023 bearing No. 28/24/2023-LAB/651, the Government of Goa in exercise of powers conferred by Clause (d) of sub-section (1) of Section 10 of the Industrial Disputes Act, 1947 (Central Act 14 of 1947), has referred the following dispute to this Tribunal for adjudication.

SCHEDULE

- (1) Whether the demand of the Union for payment of 20% bonus for the years 2017-18, 2018-19, 2019-20 and 2020-21 to the workers employed in their factory by the management of M/s. Omni Impex Private Limited, Pissurlem Industrial Estate, Honda, Sattari, Goa, is legal and justified?
- (2) If not, what relief the parties are entitled to.

2. Upon receipt of the reference, it was registered as IT/13/2023 and registered A/D notices were issued to both the Parties. Pursuant to service of notice, Party I filed their Claim Statement at Exhibit 3.

3. In the Claim Statement the Party I stated that the Gomantak Mazdoor Sangh is a registered Trade Union under the Indian Trade Unions Act, 1926 and is a recognized Union in the Factory. The said Union is representing majority of the workmen employed by the Party II at their Factory at M/s Omni Impex Private Limited, Pissurlem, Industrial Estate, Honda -Sattari-Goa. The Party I stated that M/s Omni Impex Private Limited, Pissurlem, Industrial Estate, Honda-Sattari-Goa, is an industrial establishment having its Factory in Goa.

4. The Party I states that the Party II is engaged in manufacturing and export of chemical products. The Party I states that there was practice of paying one-month gross salary as bonus before the Ganesh Chaturthi every year during the past several years. However, in the year 2022, the management has not paid the bonus before Ganesh festival and informed the workers that they will pay the bonus as per the Payment of Bonus Act, 1965. The Party I states that as the management refused to pay the bonus before Ganesh Chaturthi as per existing practice, the Union vide their dated 21/10/2023, raised an industrial dispute before the Deputy Labour Commissioner-Panaji.

5. On receipt of the above letter, the Deputy Labour Commissioner called both parties for joint discussion, initially on 10/11/2022 and thereafter on several occasions and finally on 27/07/2023. Due to the adamant attitude of the management the matter ended in failure. The Party I states that in spite of request of demand for production of balance sheet for the years 2018-2019, 2019-2020, 2020-2021 and 2021-2022, the management refused to supply the copy of the Balance sheets even to the Conciliation Officer. The Party I states that the following workers have worked during the past four financial years and they are covered under the Payment of Bonus Act, 1965.

Sr. No.	Name of the workers	Category
01.	Dipak A. Naik	Semi-Skilled
02.	Satish Naik	Semi-Skilled
03.	Shyam R. Gawade	Semi-Skilled
04.	Gokuldas L. Gaonkar	Semi-Skilled
05.	Shiva L. Gawade	Semi-Skilled
06.	Sada K. Gawade	Semi-Skilled
07.	Ratnakant B. Gawade	Semi-Skilled

08.	Datta G. Mauskar	Semi-Skilled
09.	Manuel M. Xalxo	Semi-Skilled
10.	Sairaj P. Dalvi	Skilled
11.	Samir S. Gaonkar	Skilled
12.	Ashok Minj	Skilled

6. The Party I states that the above workmen are entitled for 20% bonus as per the Payment of Bonus Act, 1965 as the Company has made huge profits and there was an allocable surplus to pay 20% bonus for the last four years. The Party I states that after the matter ended in failure, the State Government was pleased to refer the dispute for adjudication to the Industrial Tribunal cum Labour Court.

7. The Party I states that workmen were employed by the Party II and all the confirmed workmen have been paid 8.33% minimum annual bonus under the Payment of Bonus Act, 1965 for the accounting year 2017-18, 2018-19 and 2020-21 as against 20% maximum annual bonus entitled by the Party I. The Party I states that for the year 2019-20, the Party II/Management has not paid even the minimum bonus under the garb of Covid-19.

8. The Party II have refused to pay the balance of 11.67% bonus to the workmen for the accounting years 2017-18, 2018-19 and 2020-21 and for the accounting year 2019-20 was not paid even the minimum bonus under the garb of Covid-19. The Party I states that the Party II has made huge profit in the accounting year 2015-16 and 2016-17 and there is an allocable surplus in their Balance Sheet for the above two years which have to be carried forward for the next accounting year, which the Party II/Company has not done.

9. The Party I states that the company has shown the Gross Profit of Rs. 49,43,215/- in addition to the depreciation of Rs. 45,28,598/- and tax expenses has been shown as Rs. 13,00,535/- and deferred tax has been shown as Rs. 60,305/-. In spite of the profit and available surplus in addition to allocable surplus carried forward for the past three years the workmen are entitled for 20% Bonus, whereas the management has not paid any bonus for the accounting year 2019-20 under the garb of Covid-19.

10. The Party I states that in fact that Party II has made huge profits and there is allocable surplus to pay the 20% bonus for the accounting years 2017-18, 2018-19, 2019-20, and 2020-21. The Party I, therefore, raised an industrial dispute with the Labour Commissioner by its letter dated 21/10/2023 and demanded 20% maximum annual bonus for the said years. The Party I states that the detailed profits and available surplus calculated is based on the Balance Sheet of the Company.

11. The Party I states that the details of the calculation of the Bonus for the year 2017-18, 2018-19 and 2020-21, at the rate of 11.67% and 20% for the year 2019-20 of the 12 workmen is based on the Payment of Bonus Act, 1965 and is as per the Notification dated 31/12/2015. The Party I states that they had also requested the Party II/Management vide their letter dated 23/10/2023 to produce the copy of Balance sheets for the financial years 2018-19, 2019-20, 2020-21 and 2021-22.

12. The Party I states that the Party II/Management refused to give any documents even to the Conciliation Officer and due to the adamant nature of the Management, the matter was ended in failure and thereafter referred to the Industrial Tribunal for adjudication. The Party I therefore states that the action of the management in not paying the 20% Bonus to all the workmen is illegal and unjustified and bad-in-law as they are legally entitled for bonus under the Payment of Bonus Act, 1965.

13. The Party II in its Written Statement filed at Exhibit 5 submits that the dispute is not raised under Section 22 of the Payment of Bonus Act, 1965 and that no bonus is payable for the accounting year 2019/20 on account of severe disruption during the Covid pandemic and the shutdown by the Government of India and Goa under Disaster Management Act, 2005. The Party II submits that the Party I claiming to be Trade Union which is representing the workers of the Party II as stated in the Claim Statement, was not even formed and recognized at the relevant period of the dispute in question. The said Union was formed and recognized only in the year, 2022 and the Settlement was signed with the said Union and its local committee members only on 27/06/2022. It is, therefore, stated that the alleged balance amount of bonus payable as claimed by the said Union namely Gomantak Mazdoor Sangh is not maintainable under the facts and circumstances of the present matter.

14. The Party II submits that the Party I/Union which is formed in the year 2022, therefore, has no locus standi to claim bonus for the accounting year 2017-18, 2018-19, 2019-20 and 2020-21, as the Party I/Workmen had signed the settlement with the Party II/Management in the year, 2022 as per the Memorandum of Settlement dated 27/06/2022.

15. Further, assuming without admitting that the Party II is liable to Pay the bonus amount to the Party I, none of the workers who are allegedly entitled for balance bonus amount as claimed in the Statement of Claim have been examined to justify their claim. Further, their individual statements are also not produced on record to ascertain the validity and the authenticity of the said claim made by the Party I/ Union.

16. The Party II states that the Party II is covered under the Payment of Bonus Act, 1965 and has been paying Bonus as per the Bonus Act based on the allocable surplus arrived at under the Bonus Act. The Party II states that under Section 19 of the Payment of Bonus Act, in the normal conditions, the Bonus is payable within a period of eight months from the close of the accounting year. In other words the Bonus is payable on or before 30th November of the following year to those who are eligible for the same. The Party II submits that since the inception of the Factory, the Party II was paying the Bonus to its employees before Diwali upto the year 2012.

17. Subsequently, the Party II began to make payment before the Ganesh Chaturthi as per the specific request of the employees so as to celebrate the festival in good atmosphere. Party II submits that there was no custom or practice to pay the bonus before the Ganesh Chaturthi as the Company was fighting for its very survival and the uncertainty of the future was at its peak.

18. The Party II submits that in the year 2017-18, the Party II had the Allocable Surplus of Rs. 22,34,335/- and the Bonus paid was Rs. 6,89,966/- and further a sum of Rs. 6,89,966/- was set on for the year 2018-19. The Party II submits that the Party II had the allocable surplus of Rs. 3,33,902/- in the year 2018-19 and the bonus paid was Rs. 8,99,815/- after adjusting the set-on of 2017/18. In the year 2018/19, the set-on carried forward was Rs. 1,24,053/-. The Party II submits that in the year 2019-20 there was no allocable surplus and no Bonus was paid for the said year due to Covid-19 Pandemic. The Party II submits that in the year 2020-21 the allocable surplus was Rs. 78,287/- and the Bonus of Rs. 7,18,254/- was paid to the employees and the set off was Rs. 5,15,914/- after adjusting the set-on of earlier year of Rs. 1,24,053/-. The Party II submits that since the Party II has paid bonus as per the Bonus Act, no further Bonus is payable to the employees as claimed under the Reference. The Party II prays that the reference thus be rejected.

19. In the Rejoinder filed by the Party I at Exhibit 6, it is denied that the Party II is paying Bonus as per the Bonus Act based on the allocable surplus arrived at under the Bonus Act. It is denied that the computation of gross profits given by the Party I in Annexure A to the Claim Statement are not based on the calculations for arriving at the allocable surplus for the payment of bonus as per provided under the Bonus Act.

20. On completion of the pleadings, the following Issues were framed on 07/02/2024 at Exhibit 8 by this Tribunal which reads as under:

ISSUES

1. Whether the Party I/Workmen prove that their demand for 20% bonus for the year 2017-18, 2018-19, 2019-20 and 2020-21 to the workers is just and legal?
2. Whether the Party I/Workmen are entitled to any relief?
3. What Award? What Order?

21. From the issues framed hereinabove, both the Parties to the proceeding have led their evidence in respect of these issues and my findings to the same with reasons are as follows:

Issue No.1	:	In the Affirmative
Issue No. 2	:	Partly in the Affirmative
Issue No. 3	:	As per Final Order

REASONS

22. *Issue No. 1:* It is the contention of the workmen concerned in the present reference that they are employed by the Party II and all are confirmed workmen who have been paid by Party II 8.33% minimum annual bonus under the Payment of Bonus Act, 1965 for the accounting year 2017-18, 2018-19 and 2020-21 as against 20% maximum annual bonus as required to be paid by Party II as per the entitlement of Party That for the year 2019-20, the management has not paid even the minimum bonus under the pretext of Covid-19. The Party II further refused to pay the balance of 11.67% bonus to the workmen for the accounting years 2017-18, 2018-19 and 2020-21 and for the accounting year 2019-2020 was not paid even the minimum bonus under the pretext of Covid-19.

23. The Party I/Workmen further contended that there is a huge available surplus and also the allocable surplus and hence the workers are entitled for 20% bonus for the accounting year 2017-18, 2018-19, 2019-20 and 2020-21. However, the Party II/Employer took a defence of no allocable surplus for the accounting year 2017-18, 2018-19, 2019-20 and 2020-21 and paid only 8.33% for the year 2017-18, 2018-19 and 2020-21.

24. That for the year 2019-20, the Party II did not pay any bonus under the pretext of Pandemic Covid-19 though Covid affected period was seven days only.

25. The relevant provisions of the payment of Bonus Act, 1965 are reproduced on which the Party I/Workmen have placed reliance to show that in terms of below mentioned provision of law under Payment of Bonus Act, 1965, the Employer is under the obligation to pay 20% Bonus when there is available allocable surplus. It is submitted that the Payment of Bonus Act, 1965 and the rules framed thereunder, mandate the Employer to maintain statutory registers in Form A (Computation of Allocable Surplus) and Form B (Set-on and Set-off) which clearly established a breach of statutory duty by the Employer which fact is evident from the admissions made by the management witness she having admitted under oath that their Form A was not prepared correctly as per Schedule-2 of the Payment of the Bonus Act. Thus when the Employer is statutorily bound to produce an accurate calculation and having failed to do that and admitting the defect to that extent, the entire submission therefore is unreliable.

26. Further, Section 23 of the Payment of Bonus Act, 1965, gives a presumption of accuracy to the audited accounts of a company, BUT this presumption is not absolute, especially in a dispute before a Tribunal. More importantly, Section 27 of the Act empowers the Inspector (and by extension, the Tribunal during adjudication) to require the employer to produce any book, account, register, or document and to furnish any information for the purpose of ascertaining whether the provisions of the Act have been complied with. The Madhya Pradesh High Court in a relevant case (e.g., in similar bonus-related disputes like **WRIT PETITION No. 4401 of 2022**) upheld the Tribunal's decision to increase the bonus rate after observing that the management had failed to produce five years' balance sheets and that they were attempting to conceal the allocable surplus.

27. Shri Gaonkar on behalf of the Party I further stressed upon the above referred certain important provisions of law which are mandatory in nature and as such are required to be given due consideration by the employer to calculate the gross profit as per the second schedule for calculations of available surplus and thereafter the set-on and set-off ought to be calculated as per the IV Schedule of the Payment of Bonus Act, 1965. He further submitted that as per Clause-4 of the Payment of Bonus Rule, 1975, the Employer is required to prepare and maintain the following registers:

- a) A register showing the computation of the allocable surplus referred to in clause (4) of section 2, in Form A;
- b) A register showing the set-on and set-off of the allocable surplus, under section 15, in Form B;
- c) A register showing the details of the amount of bonus due to each of the employees, the deductions under Sections 17 and 18 and the amount actually disbursed, in Form C.

28. The Party II on the other hand submitted that the workers of the Factory of the Party II became members of the Party I Union somewhere in January, 2022 and submitted its Charter of Demands vide letter dated 27.01.2022. Thereafter, a settlement was signed on 27.06.2022 for the period 01.04.2022 to 31.03.2025. That the Party II has consistently adhered to all the legal requirements and procedures and has always acted in the best interest of its workmen. Prior to the formation of the present Union, the relationship between the Employer and the workmen remained cordial and cooperative. However, after the Union came into existence, certain workmen were misled into believing that they were entitled to benefits beyond those prescribed under the law, which created an atmosphere of misunderstanding and unnecessary dispute inspite of signing of mutually agreed Settlement as mentioned above, which facts has been duly accepted and admitted by the witness of the Party I/Union and the admission reads *"It is true that prior to the formation of the Union, the Company was paying bonus to its workmen, however, I add and say that it is not in terms of Payment of Bonus Act."*

29. Thus, the issue here is not of absolute non-payment of the bonus by the Employer but the issue is as to the regards of the non- payment of 20% bonus in terms of entitlement. Denying their above claim, the Party II contended that the claim of 20% bonus raised by the Party I vide their letter dated 21.10.2023 is not maintainable, firstly, on account of delay and laches. Secondly, the claim for Bonus for the year 2017-2018 is beyond 4 ½ years, for 2018-19 is beyond 3 ½ years, that for the year 2019-20 is beyond 2 ½ years and for 2020-2021 it is beyond 1 ½ years as held by the double bench of the Bombay High Court in the matter of **Brij Biheri Singh & anr. V/s Western Coalfields Ltd., Nagpur 2022 I CLR 100** wherein it is observed that *"The matter, however does not end here. There is an important issue of inordinate delay involved in this case, and on this*

count, we are of the considered opinion that no fault could be found in the Order of Asst. Labour Commissioner. It is not in dispute that the Petitioner No.1 has stood retired on attaining age of superannuation on 30.10.2014 and it was after almost about more than three and half years i.e. on 02.07.2018 that for the first time, an industrial dispute was sought to be raised by moving on application under Section 10(1) of the Industrial Dispute Act. If the delay of about more than three and half years which has occurred here is overlooked and the dispute is revived, it would, in our opinion, have the effect of stirring up industrial unrest rather than maintaining the industrial peace which is now prevailing and which has come about by settlement of dust due to long passage of time.”

30. It is Employer’s contention that computation which are produced or annexed by the Union is prepared by union leader himself, same are neither certified by any Chartered Accountant nor the said Chartered Accountant he claims to have consulted has been examined before this Tribunal to justify authenticity of such calculations as the burden to prove those calculations is on the Union. On the other hand, the Profit and Loss Accounts and the Balance Sheets produced on record by the Party II/Company for the respective years are audited bank accounts and the same are presumed to be correct and cannot be disputed by the Union as per Section 23 and 24 of the Payment of Bonus Act, 1965 as mentioned above. Further, prior to the formation of the present Union, the Party II consistently paid all statutory dues to its employees in a timely manner.

31. As such, the judgement relied upon by Party I in Sadashiv Engineering v/s State of Madhya Pradesh (W.P. No. 4401/2022) is wholly misplaced and inapplicable to the present proceedings. That the judgment dealt with the computation of bonus and the Employer’s obligation in the circumstances where there was no binding settlement between the parties and where the dispute pertained solely to the correctness of bonus calculation under the Payment of Bonus Act.

32. That the present reference is governed by a Settlement dated 27/06/2022 under Section 18(1) of the Industrial Disputes Act, which conclusively resolved all claims including bonus claims of the concerned employee up to 31/03/2022. The central facts for consideration before this Tribunal relate to the finality and binding nature of the Settlement dated 27/06/2022. That in the absence of any subsisting industrial dispute on the date of reference, the workmen admitted non-working during the COVID-19 lockdown and the statutory disqualification and ineligibility under Sections 8, 9 and 13 of the Bonus Act. And the reliance is placed in the case of **Scindia Steam Navigation Co. Ltd. vs. Scindia Employees Union (1983I LLJ 476 Bom)**. *The original formula in accordance with which bonus was received by the employees of the companies was arrived at by agreements between the Company and the Union entered into from time to time. The first agreement dated 8th May, 1953, which was effective for the period from 1st January, 1953 to 31st March, 1953 and which provided for a scale of bonus relating to the dividends paid by the Company to its shareholders was continued by the second agreement dated 14th March, 1957 which was effective for the period from 1st June 1955 to 30th June, 1960. The original formula in accordance with which bonus was received by the employees of the companies was arrived at by agreements between the Company and the Union entered into from time to time. The first agreement dated 8th May, 1953, which was effective for the period from 1st January, 1953 to 31st March, 1953 and which provided for a scale of bonus relating to the dividends paid by the Company to its shareholders was continued by the second agreement dated 14th March, 1957 which was effective for the period from 1st June 1955 to 30th June, 1960.*

In the instant case, we have held that the petition itself is not maintainable and it is our considered view that having regard to that finding, it will be wholly improper to dilate on the arguments with regard to the constitutional validity of the provisions of the Bonus Act. It may also be pointed out that so far as the overriding effect of the provisions of the Bonus Act is concerned, we have confirmed the view of the Learned Single Judge, though with regard to employees drawing a salary of more than Rs.1600/, we have reversed his view on grounds indicated above. It was absolutely necessary for us to go into the merits of the arguments with regards to the question as to whether the agreement related to profit-based bonus or not, but that cannot, in our view, be so with regard to the question of validity of the statutory provisions in the light of our findings recorded with regard to the maintainability of the petition. We must, however, record the fact that both the Counsels for the Appellants and the Respondents in the respective appeals have exhaustively argued on the question of validity, but we are not inclined to go into those arguments.

Having regard to the view which we have taken above, we must allow the Appeal filed by the Company, being Appeal No. 184 of 1982, with the result that we must set aside the finding recorded against the Company by the Learned Single Judge on the two points. We must dismiss the Appeal filed by the Employees’ Union, being Appeal No. 335 of 1982. We, however, make no order as to costs of any of the two appeals.

33. Thus, it is the contention of the Party II that once bonus for past years is settled through a valid agreement between the employer and the workmen, such settlement is binding and cannot later be reopened. Similarly, the 2022 settlement in the present case conclusively resolved all claims including bonus, up to 31.03.2022, and therefore the present attempt by the Union to revive those settled issues is legally untenable.

34. Further, the reliance is also placed in the case of **Kirloskar Oil Engines Ltd v/s Their Workmen on 5 May, 1959**. *The respondents disputed this last allegation. They contended that the wages paid to them together with the production bonus and attendance bonus as well as other amenities provided for them fall far short of a living wage and they were entitled to claim bonus from the available surplus of the trading profits of the appellant. They accordingly made a demand for bonus for the year in question equal to one-third of their earnings of that year immediately and without attaching any condition. It appears that it was known to the parties that the tribunal had for sometime past been taking the view that depreciation fund cannot earn any return even though it is used as working capital. That explains for the state of the pleadings in the present case. Thus, according to employer the ratio in this case squarely supports the case of Party II that unless the financial demonstrate a real surplus after all mandatory prior charges, no additional bonus is payable and any contrary claim by the workmen must be rejected.*

35. Reliance is also placed in the case of **The K C-P Limited v/s The Presiding Officer & Ors on 12 September, 1996**. *This court upheld the Judgment of the High Court in K. C-P, Limited v/s Presiding Officer and Ors., [1996] 10 SCC 446 a labour dispute had erupted at the engineering unit of the appellant employing about 500 workmen. The workmen were demanding higher amount of bonus. There were strike and lockout. Appellant dismissed 29 workmen on the charges of misconduct after holding enquiries. An agreement was reached between the appellant and the union representing all the workmen on the quantum of increase in wages etc. It was further agreed that the issue of non-employment of 29 dismissed workmen would be discussed separately. On that basis all the workmen except the 29 dismissed workmen agreed to resume work. Subsequently, a settlement was arrived at between the appellant and the respondent union under Section 12(3) of the Act that the issue of non-employment of 29 dismissed workmen to be discussed in the proceedings initiated by the Joint Labour Commissioner. Meetings were held by the Joint Labour Commissioner but no settlement could be reached.*

This Court held that terms of the settlement could not be considered to be in any way ex-facie, unjust or unfair and the settlement consequently must be held to be binding on the workmen who did not accept the Settlement. This Court referred in great detail to the provisions of Sections 2(k), 2(p) and 18(1) of the Act and noticed that the decision of this Court in Herbertsons Ltd. V/s. Workmen, [1976] 4 SCC 736, where this court has held that when a recognised Union negotiates with an employer, the workers as individuals do not come into the picture. It is not necessary that each individual worker should know the implications of the settlement since a recognised Union, which is expected to protect the legitimate interests of labour enters into a settlement in the best interests of labour. This would be the normal rule. There may be exceptional cases where there may be allegations of mala fides, fraud or even corruption or other inducements. But in the absence of such allegations, settlement in the course of collective bargaining is entitled to due weight and consideration.

36. The Management also placed reliance in the case of **Mathuradas Kanji And Ors. v/s Labour Appellate Tribunal And Ors. on 7 April, 1958** to show that the employer has already paid bonus to the workmen in view of the ratio laid down in the judgement above which reads “5. Bonus schemes vary with the conditions obtaining in different industries. Though bonus is a cash payment made to the workmen in addition to the wages, it is no longer considered as an ex gratia payment.

The claim, if raised, becomes an industrial dispute and the Award made thereon is binding on the employer as well the employee. One of the categories of bonus is described as an incentive bonus. The name indicates that it is given as a cash incentive to greater effort on the part of the labour. But the essential condition for the payment of incentive bonus, just like any other kind of bonus, is that the industry concerned must earn profits, part of which is due to the contribution which the workmen made in increasing production.

6. *The first question is whether in the case of workmen engaged on piece rate basis, there is any scope for awarding incentive bonus. If the wages of the workmen were fixed and paid on piece rate basis, they would earn more if they worked more and therefore, the argument proceeded that it was neither just nor equitable to award payment of any further incentive bonus to workmen.”*

Though the incentive to work may be implicit in the system of piece rate work, it may be contended that other devices or adventitious aids may be conceived and implemented to speed up the pace and to induce the labour to put up extra effort. We do not propose to express our opinion in this case on the said question, as, even if payment of incentive bonus was legally permissible; in the case of piece rate work, the workmen would be

entitled to it only if the appellants made profits in the business. But in this case the contesting respondents did not claim incentive bonus linking it with profits. There was no allegation at any stage of the proceeding that the appellants made profits due to the contribution which the workmen made in increasing the production. There was also no evidence placed before the Tribunals or before us to prove that the appellants earned profits. In the circumstances, the workmen were not entitled to incentive bonus claimed by them. In the result the appeal is allowed, but in the circumstances, without costs”.

37. The ratio in the above judgement is that the incentive bonus is payable only where the industry earns the profit and such profits are attributable at least in part, to the increase in production contributed by the workmen. Thus, according to the Party II, the Party I/Union could not place any evidence on record about the employer having earned profit and therefore cannot be awarded statutory bonus as claimed under this reference.

38. On the objections on the point of limitation i.e. the delay and the laches raised by the Employer, the workmen in rebuttal placed reliance in the case of **Ajaib Singh v/s. Sirhind Co-op.**, wherein it is held that “Article 137 of the Limitation Act does not apply to the Industrial Disputes Act”.

39. And in the said case **Ajaib Singh vs. Sirhind Co-op (Supra)** further ruled that delay can only be a defense if the employer proves real prejudice. According to the workmen they have produced all audited records for the disputed years, proving that the passage of time did not hinder their defense. It is their contention that the cause of action for non-payment of statutory bonus is an continuous action on behalf of the Management and that the failure could be the statutory bonus for 2019-20 is a continuing breach of law that cannot be extinguished by a mere lapse of time.

40. Dismissing the claim of the employer that there has been waiver on the part of the workmen they since having signed the settlement of June, 2022. In rebuttal, it is the workmen who sought to rely on clause 25 of the Settlement which explicitly mandates that Bonus will be paid as per Payment of Bonus Act, 1965. As such, the Union is merely seeking enforcement of this clause as the Management admittedly failed to follow the Act’s formulas.

41. The above position of law has been categorically admitted by the management witness hence there cannot be any waiver of statutory rights in terms of Section 23 of the Payment of Wages Act and General Labour Principles, the workman cannot “contract out” of the mandatory statutory benefits like minimum bonus.

42. In support of their above contention and rebuttal to the case laws cited by the Employer, the Party I/Union placed reliance on the below mentioned citations coupled with their claim of statutory 20% bonus. According to the workmen, while Section 23 of the Bonus Act provides a presumption of accuracy for audited accounts, the Supreme Court in cases like **Khandesh Spg. & Wwg. Mills Co. Ltd. v/s Rashtriya Girni Kamgar Sangh** has held that “*if the entries in the Balance Sheet are challenged, the Employer must lead evidence to justify the specific figures used for statutory deductions. However, the witness examined by the Management, Mrs. Kulkarni, when asked to justify the figures used for statutory deductions admitted that she cannot answer questions regarding capital expenditure, donations and tax refunds, the employer has failed to justify the deductions used to lower the available surplus.*”

In **Metal Box Co. of India Ltd. v/s Their Workmen**, the Court established that a Tribunal can go behind the balance sheet if it is shown that the employer has not properly added back items required by the Second Schedule.

43. Further, Mrs. Kulkarni (MW1) categorically admitted under cross-examination that she did not consider Item No. 4 of Schedule 2 (adding back reserves). Thus, the Party I/Union could clearly bring out on record the error committed by Mrs. Kulkarni in using the figures for statutory deductions thereby subjecting her calculations under the umbrella of doubts creating a dent in the entire calculation sheet Form A at Exhibit 40 Colly.

44. * Welfare Nature of the Act: The Supreme Court in **Jalan Trading Co. (P) Ltd v. Mill Mazdoor Sabha** emphasized that the *Payment of Bonus Act* is a welfare legislation designed to ensure workers receive their share of profits.

45. The management stressed upon the point that under clauses-27 (b) & (c) the Party I and the workers have agreed as follows:-

- b) *This settlement is full and final settlement of all demands raised by the Union in their Charter of demands dated 27th January, 2022 mentioned in the recital clause above and other demands, which are not specifically dealt with or not pressed in this Memorandum of Settlement shall be treated as settled.*

- c) *The Union and the workmen individually, jointly or through any other union or agency, irrevocably agree not to raise or pursue any dispute in respect of any demands covered under this Memorandum of Settlement, whether specifically covered or not pressed or withdrawn in this Memorandum of Settlement and further agree not to raise any demand of any nature whatsoever on behalf of these workmen involving any financial burden or otherwise on the Company, directly or indirectly during the currency of this settlement.*

46. The Employer contented that the Party I/Union cannot raise any demand on the past bonus paid to the workers for the years 2017-2018 to 2020-2021 and the reference is liable to be rejected on this count. The Party II, acting in good faith and maintaining transparency, duly computed the allocable surplus for the relevant years in accordance with Sections 4, 5 and 6 of the Payment of Bonus Act, 1965. The bonus payable to the workmen was determined strictly on the basis of the allocable surplus arrived at under the Bonus Act for distribution for each accounting year. The workmen were accordingly paid the statutorily applicable bonus as mandated under Section 10 of the Payment of Bonus Act, 1965 for each of the relevant accounting years. These payments were duly recorded in the accounts of Party II and the receipts were acknowledged and signed by the respective employees.

47. The Party II submits that the determination of bonus is a statutory exercise strictly governed by the computation mechanism prescribed under the Act. The bonus payable is directly linked to profits and allocable surplus and Party II cannot be compelled to pay any amount beyond what is legally permissible. The contrary contention of Party I is therefore untenable. That the Party II has produced the Profit and Loss for the years 2017-18 to 2020-21 as also the computation of available surplus as provided under Section 5 of the Bonus Act.

48. It is submitted that the computation of minimum bonus under Section 10 and maximum bonus under Section 11 was carried out by Party II strictly in accordance with the statutory formula prescribed under the Act. This computation took into account depreciation, direct taxes, 85% on capital and 6% on Reserve shown in the Balance sheet at the Commencement of the year in terms of Section 6. Further, Section 13, which provides for proportionate reduction in bonus where an employee has not worked for all working days in the accounting year, was also duly applied.

49. Shri Puti Gaonkar in support of the Party I's claim of 20% bonus submitted that as per the clause 5 of Payment of Bonus Rule, 1975, every employer shall on or before the 1st day of February in each year upload annual returns in the Form D on the web portal of the Ministry of Labour and Employment giving information as to the particulars specified in respect of the preceding year.

50. Shri Puti Gaonkar examined himself to justify the claim of the Party I and produced on record the calculation of available surplus and allocable surplus based on the Balance-Sheet obtained by them to substantiate their case that there was an allocable surplus to pay the maximum 20% bonus to all the employees who have worked during the said period.

51. Shri P. Gaonkar strongly stood by his claim and has given all the detailed clarification and due justification in support of the claim of the Party I of 20% Bonus and maintained his stand stating that though the Company was paying bonus to the workmen prior to the formation of the Union, however, the bonus was not paid in terms of Bonus Act. In the cross, he has further stated that the bonus was not paid to the workmen for the year 2019-2020. He admitted that he was the signatory to the Memorandum of Settlement dated 27/06/2022 and also identified the signature on the said Memorandum at Exhibit 23 and further admitted that as per Clause-13, the tenure of the Settlement was for the period from 1/04/2022 to 31/03/2025 and further maintained and reiterated his claim that as per Clause-25 of the said Memorandum of the Settlement, both the Parties to the Agreement agreed to pay the bonus as per the Bonus Act, 1965. He further goes on to admit that after this Memorandum, bonus was paid to the workmen, however, again maintained his claim that the bonus was not paid as per the Bonus Act, 1965. From his statement above which has come up in cross-examination, one can appreciate that this witness has stood by his testimony in support of 20% claim of bonus being not paid by the Employer in terms of Bonus Act, 1965. The objections raised by the Party II in their written arguments as regards to the competence of Shri Puti Gaonkar of computing Gross Profit for the accounting year ending 2017-18, 2018-19, 2019-20 and the accounting year 2021, gets totally diluted when he has categorically stated in the cross-examination he having verified the legal provision of the Payment of Bonus Act and Section 4 of the Act. Gross Profit of the establishment of the Employer has been derived in the manner specified in the second and third schedule of the Act. Though the competence and the authority of Shri Gaonkar in computing the gross profit and loss of the company was challenged, however, the Employer could not point out any flaws in the

computation of the gross profit for the above accounting years. Shri Gaonkar further confirmed that these calculations were done by him in consultation with a Chartered Accountant.

52. On the other hand, the Employer examined Smt. Shubangi Kulkarni, their Accountant, who produced on record Form A and B at Exhibit 40 Colly in support of their contention to show that there was no allocable surplus as per Exhibit 40 colly prepared by her, however, she could not withstand the cross-examination and made several material admissions by which the Party I could easily squeeze out all the flaws in Exhibit 40 Colly prepared by her. Smt. Kulkarni admitted that the gross profit is computed in terms of Section 4 of the Bonus Act and that the calculations are required to be done in terms of procedure laid down in terms of Section 4 of Schedule 2 of the Bonus Act and that the computation of available surplus is required to be done in terms of Section 5 of Bonus Act as well that the set-on and set-off is required to be done in terms of Section 15 read with Schedule 4 of the Act and also admitted that the illustration to that effect given in Schedule 4 of the Act is accepted to be correct. She further admitted that as per Schedule 3 of the Act, 6% of its reserve is required to be shown in the Balance Sheet at the commencement of the accounting year, including any profit carried forward from the previous accounting year. She further goes on to admit and accept that the computation of gross profit as shown in Second Schedule, Item No. 2, 3, 4 and 5 are required to be added and only Item No. 6 is to be deducted after adding Item No. 2 to 5.

53. The witness further admits that in the Balance Sheet prepared by Her, the amount shown in the Investment Column has been shown as fixed deposit with the bank which amount has not been credited directly to the reserves. The witness despite having admitted that as per Section 2, Clause 4 of the Act, one has to add income profits or gain (if any credited directly top reserve other than capital receipt and capital profits (including profit on the same of the capital asset on which depreciation has been allowed for income tax or agricultural income tax) however in reality she has not taken into consideration all the above aspect while computing the profit and loss. That means the witness though admits that the computation required has to be done in the manner stated at the same time admitted that she has not complied with the same.

54. Further, when shown to her the Notification at Exhibit 41, she admits that the wages shown in Exhibit 41 for the period from 2017-18 to 2021 and that as per the said Notification every month the VDA changes. Thus, there is a direct admission by Smt. Kulkarni that the Employer has not added the amount of reserved from the profit. She further goes on to admit that the Employer has not paid any bonus to the employees 2019-20 despite admitting the factual situation of the Factory being functional for 358 days except for 7 days closure during Covid-19 for which period the workmen were paid full salaries by the Party II. The Party I/Workmen while dismissing the Form A and Form B prepared by the Accountant, Smt. Kulkarni (MW1) has clearly depicted all the flaws in Exhibit 40 Colly and has clearly shown that the witness of the Party II, Smt. Kulkarni has not adhered to the mandatory provisions of the payment of the bonus while preparing Exhibit 40 Colly which fact the Party I established in the cross-examination of Smt. Kulkarni, the sole witness examined by the Employer. On the other hand, the calculation given by the Party I/Union though has not been prepared by an Certified Accountant but there is not a single dent/flaws the Employer could find out in the said calculation when compared to the calculation prepared by the accountant Smt. Kulkarni.

55. Admittedly, both are not Certified Accountants, therefore the Employer could not have raised the issue of Shri Puti Gaonkar being not a Certified Accountant and therefore his calculation should not be accepted. On the contrary, the evidence on record clearly justifies the act of preparation/computation by the persons who are not the certified accountants. If one carefully goes through the evidence, it is seen that the computation prepared by Shri Puti Gaonkar are much credit worthy same being done in accordance with the provisions of law compared to the one prepared by Smt. Kulakrni wherein she has given a clean go-by to the various mandatory provisions of law. There are no flaws found in the calculation prepared by the Party I and therefore presumption of the security under Section 23 of the Act would apply to the calculation prepared by the Party I as the accounts are audited in accordance with the act whereas Smt. Kulkarni categorically admitted that she did not follow the Act in letter and spirit though it is their stand continuously that they have audited the accounts as per the Act. The Party I in the cross-examination of Smt. Kulkarni could clearly show that the Employer has ignored the mandatory formula of Second Schedule (Section 4 of the Act) and there are clear and visible flaws while computing the allocable surplus.

56. There is a direct admissions from Mrs. Kulkarni accepting the fact that the computing of the gross profit in terms of Second Schedule and as per the computation shown in the said schedule Item No. 2 ,3, 4 and 5 are required to be added and only Item No. 6 is to be deducted after adding Item No. 2 to 5 and accordingly it was specifically put to her in the cross-examination that if one calculates the gross profit as per the computation shown in Schedule-II, the total gross profit which the Party II earned will be as follows:

Year	Gross Profit
2017-18	1,39,82,761.14
2018-19	1,13,18,014.85
2019-20	94,71,813.15
2020-21	1,30,53,130.31

57. The MW1 though accepted herein above the manner in which the gross profit has to be calculated as per the computation shown in Second Schedule, however, stated that she does not agree with the above calculation without giving any reasons.

58. Again, when put to her that there was sufficient available surplus with the Company when the computation was done in terms of Schedule II below as shown in the tabular column in her cross- examination,

Year	Available Surplus
2017-18	1,39,82,761.14
2018-19	1,13,18,014.85
2019-20	94,71,813.15
2020-21	1,30,53,130.31

59. The MW1 again though accepted hereinabove the manner in which the gross profit has to be calculated as per the computation shown in Second Schedule, however, stated that she does not agree with the above calculation without giving any reasons. Thus, the claim of the Employer of non-availability of the allocable surplus has been totally demolished by the Party I/Workmen by leading the cogent evidence more particularly by bringing on record material admission to that effect through Management witness i.e. MW1, Ms. Kulkarni. The Party I/Workmen in the cross-examination of the Employers' own witness, clearly and with proper justification and calculation could prove that the Employer did have 67% of the allocable surplus amounting to Rs.93,68,449.96, Rs.75,83,069.95, Rs.63,46,114.81, Rs.87,45,597.31 for the accounting year 2017-18 to 2020-21 respectively. Therefore, the demand of the Union for payment of 20% bonus is certainly a just and a legal demand considering the availability of allocable surplus for the accounting year 2017-18, 2018-19, 2019-20, 2020-21. Hence the issue No. 1 stands answered in the affirmative.

60. *Issue No. 2:* Shri Puti Gaonkar on behalf of the Union in his cross-examination admitted that the employees at serial No. 4, 10 and 11 are not entitled for the bonus amount for the year 2017-18 they having joined Party II/Company with effect from 01/06/2019, 03/05/2019 and 07/09/2018 respectively. He further admitted that the workmen Mr. Gokuldas Gaonkar and Sairaj P. Dalvi are also not eligible for the bonus of accounting year 2018-19. Since bonus for the accounting year 2018-19 and 2019-20 was paid to them on pro-data basis.

61. The evidence on record further reveals that bonus was not paid to any of the employees for the accounting year 2019-20. Therefore, all the employees are entitled for 20% bonus for the accounting year 2019-20. Secondly, the employees to whom the bonus has been paid for the accounting year 2017-18, 2018-19, 2020-21 except for the year 2019-20 but has not been paid as per their statutory entitlement of 20%, these employees are entitled for the remaining bonus payment making it 20%.

62. In view of the above observation and considering the reasons and decision given in respect of Issue No. 1, the Issue No. 2 stands answered partly in the affirmative.

Hence the following Order:

ORDER

- The reference stands partly allowed.
- The Party II/Management is required to comply with the observation above and shall grant to all the workmen concerned in the present reference their statutory bonus of 20% as per their entitlement of each workman respectively.
- Inform the Government accordingly.

Vijayalaxmi R. Shivolkar, Presiding Officer, Industrial Tribunal & Labour Court.

Panaji.

Notification

No. 28/02/2026-LAB/Part-IV/183

Date : 30-Mar-2026

The following Award passed by the Industrial Tribunal and Labour Court, at Panaji-Goa on 10-03-2026 in Ref. No. IT/39/2024 is hereby published as required under Section 17 of the Industrial Disputes Act, 1947 (Central Act 14 of 1947).

By order and in the name of the Governor of Goa.

Amalia O. F. Pinto, Under Secretary (Labour).

Porvorim.

**IN THE INDUSTRIAL TRIBUNAL AND LABOUR COURT
GOVERNMENT OF GOA AT PANAJI**

(Before Mrs. Vijayalaxmi Shivolkar, Hon'ble Presiding Officer)

Ref. No. IT/39/2024

Workman, Shri Shantaram A. Raul,
Rep. by the General Secretary,
Gomantak Mazdoor Sangh,
G-5, Macedo Appt.,
Tisk, Ponda-Goa

... Workman/Party I

V/s

M/s. Chowgule Industries Pvt. Ltd.,
D.B. Bandodkar Marg, Campal,
Panaji-Goa

... Employer/Party II

Workman/Party I represented by Shri P. Gaonkar.

Employer/Party II represented by Shri K. V. Nadkarny.

AWARD

(Delivered on this the 10th day of the month of March of the year, 2026)

By Order dated 18th September, 2024 bearing No. 28/67/2024-LAB/576, the Government of Goa in exercise of its powers conferred by Clause (d) of sub-section (1) of Section 10 of the Industrial Disputes Act, 1947 (Central Act of 14 of 1947), has referred the following dispute to this Tribunal for adjudication.

SCHEDULE

- (1) Whether Shri Shantaram A. Raul, Store Executive could be construed as "Workman" as defined under the Industrial Disputes Act, 1947?
- (2) If answer to the above issue No. (1) is in affirmative, then whether the action of the management of M/s. Chowgule Industries Private Limited, D. B. Bandodkar Marg, Campal, Panaji, Goa, in dismissing Shri Shantaram A. Raul, Store Executive from services, with effect from 05/12/2023, is legal and justified?
- (3) If answer to issue No. (2) above is in negative, then, to what relief the workman is entitled?.

2. Upon receipt of the reference, it was registered as IT/39/2024 and registered A/D notices were issued to both the Parties. Pursuant to service of notice, Party I filed his Claim Statement at Exhibit 4.

3. In the Claim Statement, the Party I states that he was appointed by the Party II vide Appointment Letter dated 06/08/2010 as a Store Assistant at the Colvale Branch. At the time of his appointment, he had specifically informed the Management that he is coming from Vengurla. The Party II has issued him an Appointment Letter dated 06/08/2010, appointing him at Swaraj Majda Ltd. at the workshop store at Colvale, Bardez, Goa. Thereafter, when the Company had taken the dealership of Eicher at Colvale, he continued to work at the said store at Colvale.

4. The Party I states that vide his joining letter dated 23/03/2023, he had joined the Union, namely Gomantak Mazdoor Sangh. On receipt of the joining letter dated 23/03/2023, the Union, vide their letter dated 28/03/2023 had informed the Management that the workman has joined the Union and had enrolled him as their member. On the receipt of the information of joining the Union, the Party II/Management started harassing him.

5. The Party I states that as a part of harassment, he was transferred at Verna vide his Transfer Order dated 02/05/2023, knowing well that he would not be able to attend the duty from Vengurla to Verna. Upon receipt of the said malafide transfer, the Party I had made representation to the Managing Director. As no action was taken by the Management, the Party I had raised a dispute through his Union, vide letter dated 25/05/2023 to the Deputy Labour Commissioner, Panaji. On the receipt of the said dispute, the Deputy Labour Commissioner called both the Parties for joint discussions initially on 05/10/2023 vide notice dated 27/09/2023.

6. The Party I states that on 05/10/2023, the meeting was attended before the Deputy Labour Commissioner by the Management Representative, Mr. K. V. Nadkarny, Labour Consultant along with Mr. Govind Khandeparkar, Manager-HR of the Party II and filed their reply dated 05/10/2023. Thereafter, Management had filed another reply dated 13/10/2023 for which the Union had submitted their reply vide their letter dated 17/10/2023.

7. Thereafter, the matter was fixed on 22/11/2023 and was admitted in the conciliation proceedings and the said conciliation proceedings were signed by the Management representative Mr. K. V. Nadkarny, Labour Consultant along with Mr. Sujay Rao, General Manager-HR and Shri. P. Gaonkar along with the Party I. In the first week of December, 2023, Party I received the final show cause notice dated 28/11/2023. That, on receipt of said show cause notice, the workman submitted his reply dated 01/12/2023. It is further stated by Party I that before issuance of the final show cause notice, the Management had not served him any Charge-sheet and he was not aware of any inquiry proceedings held against him. He came to know only on receipt of the said final show-cause notice.

8. The Party I states that the Management representative along with the Advisor met the workman and his representative before the Deputy Labour Commissioner, Panaji on 05/10/2023. In spite of meeting them, the Management representative and his Advisor intentionally did not inform him about any inquiry or any charge-sheet in order to conduct the ex-parte inquiry. That the workman has categorically stated that due to the change of postman, the new postman was not knowing the address of the workman and he intentionally did not deliver the letter to the workman.

9. The Party I states that the workman had informed the Management Representative and the Manager-HR that he had not received any communication from the Company. That, in the show-cause notice, the Company has alleged that they had published a notice on the newspaper published from his area, well knowing that the Party I Workman is the resident of Vengurla, Maharashtra, and not from Goa. Party II Management had intentionally not informed the Party I regarding the charge-sheet. That after the final show-cause notice, the workman was issued the Dismissal Order dated 05/12/2023.

10. On receipt of the said Dismissal Order, the Party I filed his Appeal dated 08/12/2023 and thereafter raised an industrial dispute through his Union vide Union letter dated 11/12/2023 and the matter had ended in failure. Thereafter, the Appropriate Government was pleased to refer the dispute by Order dated 17/18/09/2024.

11. In its Written Statement, the Party II submitted that the reference made by the Government is bad-in-law for non-application of mind and as such the same is not maintainable. It is stated that Party I, Shri Shantaram Raul was employed in the Company as an Executive and was designated as Stores Executive and was drawing salary over Rs. 26,000/- per month. He is not a workman as defined under Section 2 (s) of the Industrial Disputes Act, 1947. That the Asst. Labour Commissioner and the Conciliation Officer have erred in allowing and/or entertaining the Union in the matter of raising the dispute on behalf of a person who cannot be enrolled as a member of the Union under Trade Union Act as the concerned person not being a 'workman' as defined under Section 2(s) of the Industrial Disputes Act 1947.

12. Party II submits that they are a private limited Company carrying on business of sales and services of Maruti and Eicher Motor vehicles, as authorized Maruti Dealer in the State of Goa and Maharashtra having its registered office at D. B. Bandodkar Marg, Campal, Panjim-Goa. They had employed Party I in the Company initially as an Assistant in the Stores Department in October, 2007 on contract basis. At the time of termination of his services, Party I was holding a post in the executive category and was designated as 'Stores Executive'. Party I was directly recruited and appointed in the Company in October, 2007 on contract basis, without issuing any Letter of Appointment by the Company. However, subsequently, Party I was issued a temporary Appointment Letter dated 05/11/2008.

13. Party II submits that subsequently when a regular vacancy for the post of Stores Assistant was created in the year, 2010, Party I was appointed on regular basis and was issued a Letter of Appointment dated 06/08/2010, whereby he was appointed as Stores Assistant at their Colvale Branch, which was in continuation to their earlier Letter of Appointment bearing reference No. ADMN/CON/349 5th November, 2008.

14. By a letter dated 05/04/2011, the Party I was confirmed in the services of the Company and was placed in the pay-scale 'SE' and was designated as Stores Assistant. Subsequently, after watching his performance, he was regularly granted increments every year. Thereafter, in the year, 2019, Party I was promoted to the executive grade and was designated as 'Stores Executive' after giving him a substantial rise in salary.

15. The Party II submits that due to administrative requirement, the services of the Party I were transferred from Colvale Eicher Workshop Stores to Verna Eicher Workshop Stores in terms of clause 18 of terms and conditions forming part of his Appointment Letter. The said Transfer Order was served on the Party I in the afternoon session on 2nd May, 2023.

16. The Party II further submits that immediately on receipt of the Transfer Order which order was served on Party I by Shri Swapnil Naik, Senior H.R. Executive, Party I left his stores office and went out of his place of work i.e. Colvale stores office and disappeared from Colvale Stores without informing anybody and without handing over the charge of his assignment of his portfolio to anybody and without receiving release order of his post of Stores Executive at Colvale.

17. Party II further submits that the Party I never reported at the place of transfer from the date of his transfer and absented himself without any intimation or information of any nature from the afternoon session from 2nd May, 2023. However, on 17th May, 2023, i.e. after nearly 15 days, Party II received a letter from the Party I addressed to the Managing Director of the Company which letter was replied by the Company vide their letter dated 19th June, 2023. The Company had thereafter sent a final show-cause notice dated 14th August, 2023 directing the Party I to show-cause as to why his name should not be struck off from the Roll of Company for remaining absent from duty for 103 days without any intimation and/or permission for leave of absence or having not filed any application for leave for being absent. Said letter was returned back by the Postal Authorities with a remark in Marathi "tapas lagat nahi" meaning "Not traceable". Party II submits that the Party I has failed to report to his new place of posting and remained absent without any intimation from May 2, 2023.

18. The Party II submits that after waiting for another 45 days since addressing the final show-cause notice dated 14th August, 2023 to Shri Shantaram Raul/Party I, a Charge-sheet cum notice of enquiry dated 27/09/2023 was also sent under registered A.D. post on the home address registered in the company records by the concerned employee. Said charge-sheet cum notice of enquiry letter was also returned back by the postal authorities with a remark in Marathi "tapas lagat nahi" meaning "Not traceable".

19. The Party II submits that since the Company had already conveyed the Party I about the Order to hold enquiry and that since the Enquiry Officer was also appointed to enquire into the charge-sheet issued to Shri Shantaram Raul/Party I, a date of enquiry was fixed in charge-sheet and the notice of enquiry was sent to Party I/Shri Shantaram Raul and the said charge-sheet cum notice of enquiry sent under registered post was also returned back by the postal authorities, Thereafter, the Notice of Enquiry was published in two local dailies, one each in English and Marathi.

20. The Party II submits that since the Party I/Shri Shantaram Raul, did not attend the enquiry even after publishing the Notice of Enquiry in local dailies, publishing the date, time and place of enquiry fixed by the Management, the enquiry was held and completed Ex-parte. Thereafter the Management received report cum findings of enquiry from the Enquiry Officer. On receipt of the same, a final show-cause dated 28th November, 2023, proposing punishment of dismissal from services of the Company was issued to the Party I/Shri Shantaram Raul, which was also sent by Registered A/D post on the very same home address, registered by Mr. Shantaram Raul/Party I in the company.

21. In its Rejoinder filed at Exhibit 8, the Party I has reiterated and reproduced all the contents of the claim statement and denied the defence as stated by the Party II in their Written Statement.

22. On completion of the pleadings, the following Issues were framed at Exhibit 11 by this Tribunal which reads as under:

ISSUES

1. Whether Shri Shantatram Raul, Stores Executive could be construed as "workman" as defined under the Industrial Disputes Act 1947?

2. Whether the workman proves that the domestic enquiry was not held in fair and proper manner and the findings of the Enquiry Officer are perverse and not based on evidence on record?
3. Whether Party I/Workman proves that the action of the management in dismissing his service is victimization for trade union activities, is illegal and unjustified?
4. Whether the workman is entitled to any relief?
5. What Award or Order?

23. I have gone through the records i.e. the pleadings, the oral as well as documentary evidence adduced by both the Parties and considering the same my findings on the issues with reasons are as follows:

Issue No. 1	:	In the Affirmative
Issue No. 2, 3 & 4	:	In the Affirmative
Issue No. 5	:	As per Final Order

REASONS

24. *Issue No. 1:* In the written statement, the Party II has taken a specific plea that the workman concerned in the present reference is not a 'workman' as defined under clause (s) of the Section 2 of the Industrial Disputes Act, 1947. It is further their contention that Shri Shantaram Raul was employed in the Company as an Executive, designated as 'Stores Executive' and was drawing a salary of over Rs. 26,000/- per month. He is not a 'workman' as defined under Section 2(s) of the Industrial Disputes Act, 1947 and that the Assistant Labour Commissioner and Conciliation Officer erred in allowing and/or entertaining the Union in the matter of raising a dispute on behalf of a person who cannot be enrolled as a member of the Union under the Trade Union Act, as the concerned person not being a 'workman' as defined under Section 2(s) of the Industrial Disputes Act, 1947. As against this, the Party I/Workman, in their claim statement as well as in the evidence of Party I/Workman, has elaborated the nature of duties done by the workman in support of their contention that, though the workman was designated as Store Executive, however, he was doing the work of clerk and his duties were as under:

- (a) Physically preparation of requisition and attaching it to the job card.
- (b) To prepare the requisition and to issue the material/parts to the customer after physically preparing the bills.
- (c) Counter sale to the customer and preparation of requisition and bills.
- (d) To physically feed the entries in the computer system as per the SAP of the material/parts sold.
- (e) To physically feed the entries in the computer system as per the SAP of the inward material/parts purchased by the Company.
- (f) To physically check the material/parts in the rack and doing the verification physically.
- (g) Maintain files.
- (h) After opening the parcels, to physically check the material/parts and enter the data by physically feeding the data in the computer as per the SAP system, check them and enter into SAP.
- (i) Physically checking the material/parts in one rack everyday and verifying with the computer system.
- (j) Besides this he was doing other clerical work as per the instructions of his store Manager.
- (k) Being a store clerk, he has to receive the material/parts and also issue the material/ parts to the customer physically.

25. Thus, it is the contention of Shri Puti Gaonkar that the salary of an employee or the designation has nothing to determine whether the person is covered under Section 2(s) of the Industrial Disputes Act, 1947 or otherwise and the primary test is the dominant nature of the duties performed by the employee at the time of his termination. It is stated that though the Party I was designated as 'Store Assistant' and later on as 'Store Executive', however, he performed the duties that were clearly clerical and manual in nature. The above contention has been duly supported by the management witness, Shri Swapnil Gurudas Naik, wherein in cross-examination he has admitted that Shri Shantaram Raul was working as a Clerk, performing data entry and physically filling entries into the system.

26. Shri K. V. Nadkarny submitted that Party I, in his deposition, stated that the contents of the Spare Part Requisition Slip dated 16/03/2022 has been written by him in his own handwriting. He further admitted that he issued parts to the Technicians as per the Job Cards and after that the amount is calculated and bill is raised for repair and he signs the requisition slips after issuing the part as per the requisition. The workman also identified a voucher dated 13/12/2022 signed by him. When suggested that he has issued the invoices as the Store Executive, the workman stated that he has done so as per the direction of the Store In-charge. The evidence on record also reveals that the workman having signed the Tax Invoices and submitting those Tax Invoices for the purpose of paying GST on behalf of the Company. As such, it is the contention of the Party II that the duties performed by the workman in the nature above are administrative in nature and hence he does not fall into the definition of 'workman' as contemplated in Section 2 (s) of the Industrial Disputes Act, 1947.

27. Dismissing the above contention of the Party II, Shri Puti Gaonkar submitted that merely issuing Tax Invoice or signing Requisition Slips does not bring Party I into the definition of the 'workman' when the Party II has failed to prove that the Workman was performing any supervisory or managerial duty such as sanctioning leave of any other employee of the Company. The workman was not empowered to issue show-cause notices and to take disciplinary action. It is submitted that the Party I/Workman himself was working under the supervision of the Store Manager, which fact has been revealed in the cross-examination of the Party I witness.

28. Shri Puti Gaonkar placed reliance in the case of **Viplav Vasta v/s M/s. Chowgule Industries Pvt. Ltd.** in which case this Tribunal has previously held that Accounts Executive performing data entry and manual counting without supervisory authority is a "Workman".

29. The Hon'ble High Court of Bombay in the case of **Bombay Dyeing v/s R. A. Bidoo (1) LLJ 98 (Bombay)** held that supervision means supervision over men, not over machines or plants. Merely checking if a machine is working or stock is in order is not supervision.

30. In the case of **M/s Procter and Gamble Health Limited v/s. Smt. Anupa Desai** it is held that a Store Executive with M.Sc. qualification was a 'workman' because the receipt and issue of materials are clerical activities. The presence of helpers does not automatically imply supervision unless there is evidence of authority over them.

31. The evidence on record from the management side does not clearly bring up any of the supervisory or managerial duties performed by the workman so as to exclude the Party I/Workman from the definition of the 'workman' as defined under the Act, hence this issue stands answered in favour of the workman in the affirmative.

32. *Issue No. 2, 3 & 4:* In order to prove that the domestic inquiry conducted by the Management against the Party I/Workman was fair and proper, the findings of the Enquiry Officer are placed on record. The Management examined the Enquiry Officer, Shri S. B. Bhangui. His Affidavit in Evidence is on record at Exhibit 38. The Enquiry Officer has produced complete enquiry records of the enquiry including Report Cum Findings of the Enquiry produced before him, which is at Exhibit-39 Colly. The Enquiry Officer was cross-examined by Defence Representative for Party I, but nothing substantiative has been brought on record in support of the allegations. The Management has examined two witnesses at the enquiry and leave records of the Party I were brought on record of enquiry, copies of which were issued to the Party I. The enquiry was proceeded ex-parte as Party I did not attend though necessary notice of enquiry was published in the local newspapers, as Notice of enquiry cum charge-sheet sent by Registered A/D was returned back by postal authorities with remark "not found". In the notice of enquiry published in the local newspapers the dates of enquiry fixed for two consecutive days were published, as postal notice on the address registered in the Company records by Party I are on record of enquiry.

33. According to the Party II, as per the administrative requirement services of the Party I were transferred from Colvale Eicher Workshop Stores to Verna Eicher Workshop Stores, in terms of clause-18 of terms and conditions forming part of his Appointment Letter. The said Transfer Order was served on the Party I in the afternoon session on 2nd May, 2023. A copy of Transfer Order dated 2nd May, 2023, served on him on the same date is annexed herewith. On receipt of the Transfer Order, which order was served on Party I by Shri Swapnil Naik, Senior H.R. Executive the Party I left his Stores Office and went out of his place of work i.e. Colvale Stores Office and disappeared from Colvale Stores without informing anybody and without handing over the charge of his assignment of his portfolio to anybody and without receiving Release Order of his post of Stores Executive at Colvale.

34. The Party I never reported at the place of transfer from the date of his transfer and absented himself without any intimation or information of any nature from the afternoon session of 2nd May, 2023. However, on 17th May, 2023 i.e. after nearly 15 days, the Party II received a letter from the Party I addressed to the Managing

Director of the Company. The said letter was replied by the Company vide their letter dated 19th June, 2023. The Company had sent a final show-cause notice dated 14th August, 2023, directing the Party I to show-cause as to why his name should not be struck off from the Roll of the Company for remaining absent from duty for 103 days without any intimation and/or permission for leave of absence, or filed any application for leave for being absent. The said letter was also returned back by the postal authorities with the remark in Marathi “tapas lagat nahi” meaning “Not traceable”. The management then went ahead with the inquiry whereby the Enquiry Officer issued notice of inquiry, which was sent to the Party I/Workman by Registered Post and on receipt of the return of the said notice with the same the postal remarks, the notice of inquiry was published in two local dailies. Since the Party I did not attend the inquiry even after publishing the notice for inquiry in the local dailies, the inquiry was held Ex-parte against the Party I/Workman.

35. Dismissing the justification given by the Management in concluding the inquiry Ex-parte against the workman, Shri Puti Gaonkar, submitted that the domestic inquiry was a farce, conducted Ex-parte, and in gross violation of the principles of natural justice. Deliberate non-service of Notice, the Management was fully aware that the workman resides at Shiroda, Sindhudurg, Maharashtra. Despite this knowledge, the Management published the inquiry notice in local Goan newspapers which has no circulation in the workman’s native village in Maharashtra. This was a calculated move to ensure that the Workman did not receive notice. The Management refused to send the notice via WhatsApp, despite having the number and being requested to do so in the presence of the Conciliation Officer. The Management was informed that the Postman at the workman’s rural address was new and unreliable, yet they relied solely on postal remarks. Concealment during Conciliation: While the enquiry was purportedly on-going (October 2023), the Management representatives, Mr. K. V. Nadkarny and Mr. Sujay Rao were meeting the Workman in conciliation proceedings on 05/10/2023 and 13/10/2023. They deliberately suppressed the fact that an inquiry was being conducted further proving their malafide intent. Consequently, the inquiry concluded in just two sittings i.e. 21/10/2023 and 23/10/2023 is perverse and cannot be sustained.

36. The Employer/Management, to substantiate their case in support of their decision to transfer the Party I/Workman in terms of clause-18 of the Transfer Order, placed reliance on the order passed by the Hon’ble High Court Of Bombay at Goa in writ petition on 373/2022 and 375/2022. While distinguishing the same, Shri P. Gaonkar submitted that the said Order, in fact supports the Workman’s case to the extent that in the said case the Employer fails to mention that this Tribunal had specifically held that the transfers of those workers were illegal, malafide and amounted to victimization for union activities. The High Court judgment relied upon by the Party II did not overturn the factual finding that a transfer used as a weapon of harassment is illegal. Secondly, in the said case, the Tribunal had awarded Transport Allowance and Daily Bhata to the workmen for the hardship caused by the distance. This relief awarded by the Tribunal was held to be correct and was not set aside on the grounds of merit regarding the hardship faced by workman. Thirdly, While the Hon’ble High Court in WP 373/2022 upheld the legal validity of Clause-18 (power to transfer), the Management in that case was forced to concede that they would not enforce the Transfer Orders against the concerned workmen. The workmen were ultimately retained or re-transferred to their original locations (e.g., Fatorda).

37. Further, distinguishing the observation and the facts in the case of Indian Express v/s Ganesh Gopinath Rane, Hon’ble High Court of Bombay, the Party I/Workman contended that in the Indian Express case, the Management produced documentary evidence showing a specific vacancy caused by the retirement of an employee at the transferred location (Aurangabad), creating an urgent need for a replacement. Distinction: In the present case, Party II has failed to place on record any document showing a sudden vacancy or urgent work requirement at Verna that specifically required Shri Shantaram Raul’s presence. The transfer here was not for an ‘administrative exigency’ but was clearly a reaction to him joining the Union in March, 2023. Further, in the said case the workman was promoted to the post of Supervisor and was given a salary hike.

38. However, in this case, the Party I/Workman has not been promoted nor transferred to a different location by increase in his salary, which has affected his take-home pay due to travel costs, causing him financial loss. The same amounts to a downward alteration of service conditions, unlike the Indian Express case. Similarly, the Party I/Workman distinguished the citation in the case of **U.P. Singh v/s Punjab National Bank (Supreme Court)** on the ground that, *in the said case, the workman remained absent for six years and had even started practicing as a lawyer, proving he had abandoned his job.*

39. Whereas, in the case in hand, Shri Raul has never abandoned his service. He immediately raised a dispute, wrote protest letters and attended conciliation proceedings. A workman fighting a legal battle for his posting cannot be compared to one who stayed silent for six years. Undisputedly, the workman in this case has been held guilty of the charges, which charges the management has proved Ex-parte against the Party I/Workman. The hearing in this case was completed in two consecutive hearings without there being any

reasonable gap between both the hearings. The major factor which goes against the Management in the entire inquiry is that the Management first and foremost did not inform the Party I/Workman anything about the inquiry, when the workman attended the conciliation proceedings.

40. Secondly, the notice could have been served digitally via Whatsapp, which also has not been done. Thirdly, the notice has been published in the daily news-papers circulated in the State of Goa when the Party I/Workman is a permanent resident of Shiroda, District Sindhudurga, State of Maharashtra.

41. Thus, prima facie, the notice of the inquiry is not a good service on the Party I/Workman. As such, an inquiry pursuant to the bad service cannot be held to be a fair and proper inquiry. The Party I/Workman has questioned the validity and duality of the reference as according to that the Dismissal Order dated 05/12/2023 is void ab initio and illegal as there has been mandatory non-compliance of the provisions of Section 33 of the Industrial Disputes Act, 1947. It is the case of the Party I/Workman that on the receipt of the information of him joining the Union, the Party II/Management started harassing him and as the consequences of which he was transferred to Verna via a transfer Order dated 02/05/2023. The location of transfer was far away from his residence and from his workplace prior to the Transfer Order. As such, the Party I made representation to that effect through his Union to the Deputy Labour Commissioner, Panaji. The Deputy Labour Commissioner, Panaji called both the Parties for joint discussion on 05/10/2023, on which date the Management Representative, Mr. K. V Nadkarny, along with the HR-Manager, Mr. Govind Khandeparkar, remained present and filed their reply. Thereafter, the matter was admitted into conciliation on 22/11/2023 and the said conciliation proceeding was signed by both the Parties.

42. That, in pursuance of the ex-parte inquiry, the Management issued a show-cause notice dated 28/11/2023. The Party I/Workman filed his reply on 01/12/2023 and the workman was dismissed on 05/12/2023, i.e. pending the conciliation proceedings before the Deputy Labour Commissioner. It is submitted that the misconduct alleged in the charge-sheet under inquiry was directly connected to the alleged Transfer Order, which was the subject matter before the Conciliation Authority. As such, the Management was required to file an application for approval under Section 33(2)(b) before the Authority. The evidence on record reveals that no such application has been filed by the Party II/ Employer. The Management witness, Mr. Swapnil Naik, in his evidence clearly admitted that the matter pertaining to the Transfer Order has been admitted in conciliation. Furthermore, there is no evidence produced on record to show that the management filed any application for approval, in view of pending Conciliation Proceedings in compliance with Section 33(2)(b) of the Act. The Management/Party II has failed to rebut any of the above submissions as regards to violating the mandatory provisions of Section 33 of the Industrial Disputes Act, 1947.

43. Therefore, the ratio laid down in the case of **Jaipur Zila Sahadari Bhoomi Vikas Bank Ltd. (Supra)** has come to the rescue of this Workman. The Party I/Workman has been able to establish that his termination was illegal as the same was done during the pendency of the conciliation proceedings in which he too was a concerned Workman. Therefore, Party II ought to have refrained from taking any action pending such conciliation in view of Section 33(2)(b) of the Industrial Disputes Act, 1947. Therefore, the question of violation of Section 33(1) of the Industrial Disputes Act, 1947 requires to be considered in the light of the relevant statutory provisions. Section 33 of the Industrial Dispute Act, 1947 sub-section (1) reads as under:

33. Conditions of service, etc., to remain unchanged under certain circumstances during pendency of proceedings.- (1) During the pendency of any conciliation proceeding before [an arbitrator or] a conciliation officer or a Board or of any proceeding before a Labour Court or Tribunal or National Tribunal in respect of an industrial dispute, no employer shall,- (a) in regard to any matter connected with the dispute, alter, to the prejudice of the workmen concerned in such dispute, the conditions of service applicable to them immediately before the commencement of such proceeding; or (b) for any misconduct connected with the dispute, discharge or punish, whether by dismissal or otherwise, any workman concerned in such dispute”.

44. Furthermore, as per the ratio laid down in **Lokmat Newspapers Pvt. Ltd. v/s Shankar Prasad (1999) 6 SCC**, it is but obvious that the impugned termination of the said Workman on 17/02/1997, amounts to unfair labour practice. The relevant portion is reproduced which read as under:

‘... (19) NOW it must be stated that the impugned termination order was passed against the respondent-workman on 22/06/1982. Within three days thereof, the respondent raised an industrial dispute by filing a complaint under Section 28 of the Maharashtra Act alleging that the impugned termination order amounted to unfair labour practice. Before the impugned termination order was passed by the management, it had already served a notice under Section 9-A of the I. D. Act to the respondents union to the effect that it proposed to introduce a change in the conditions of service of the respondent and other members of the union on the ground that it was proposing to rationalise the printing work at the appellants concern at Nagpur by setting up photo-

type machine for carrying out the work of composing, resulting in substantial reduction in the work of composing by hand. It may be stated that the respondent was employed as a foreman in the hand-composing department of the appellant at the relevant time. The respondents union objected to the said notice of change and approached the Conciliation Officer under Section 12(1) of the I.D. Act which reads as under:-

12. Duties of Conciliation Officers.- (1 Where an industrial dispute exists or is apprehended, the conciliation officer may, or where the dispute relates to a public utility service and a notice under Section 22 has been given shall, hold conciliation proceedings in the prescribed manner”

(20) THE Conciliation Officer took the dispute in conciliation within his discretion even though as appellants concern was not a public utility service it was not mandatory for the Conciliation Officer to start conciliation proceedings. As the report of the Conciliation Officer submitted to the State government shows, he invited the management and the respondents union for preliminary discussions on 14/4/1982 in his office and thereafter the matter was adjourned during conciliation from time to time.

(21) IT can therefore, be said that by 14/04/1982 the matter was taken up for investigation and thus the conciliation proceedings had commenced. It is also well established on the record of the case that the parties could not come to any settlement with the result that on 22/06/1982 the investigation was closed by the Conciliation Officer at 4.35 p.m. at Nagpur. Immediately thereafter the, appellant passed the impugned order of termination against the respondent and others on the very same day i.e. on 22/6/1982 at 5.00 p.m. The said order was placed on the notice board of the appellants office at Nagpur on the evening of that day. It is not in dispute between the parties that thereafter the Conciliation Officer submitted his report to the government which reached the State government on 13/8/1982.

(22) ON the aforesaid facts, the question arises whether the impugned termination order dated 22/6/1982 was passed during the pendency of the conciliation proceedings. It is not in dispute between the parties that before passing such an order no express permission in writing was obtained by the appellant from the Conciliation Office. The Labour court/the Industrial court and the learned Single Judge of the High court have taken the view that because investigation was closed by the conciliator by 4.35 p.m. on 22/6/1982, immediately thereafter the conciliation proceedings could be said to have ended and were not pending before him. Consequently at 5.00 p.m. on that very day when the appellant issued the impugned order, it did not violate Section 33 of the I.D. Act. While, on the other hand, the division bench of the High court in the impugned judgment has taken the view that merely because the conciliator closed the investigation in the evening of 22/6/1982 till he prepared his report as per Section 12(4) of the I. D. Act and till that report reached the government, conciliation proceedings were deemed to have continued and had not got terminated till 13/08/1982 and as in the meantime on 22/6/1982, the impugned termination order was passed without following the procedure of Section 33(1) of the I.D. Act it got vitiated in law.

(23) UNDER these circumstances, a moot question arises whether the impugned retrenchment order was passed on 22/6/1982 during the pendency of conciliation proceedings. It cannot be disputed that the impugned order was directly connected with the matter in dispute before the Conciliation Officer wherein the question of legality of notice under Section 9-A of the I. D. Act was under consideration for the purpose of arriving at any settlement between the parties in this connection. The impugned order had definitely altered to the prejudice of the respondent his conditions of service. It was not a case of retrenchment simpliciter but was a consequential retrenchment on the introduction of the scheme of rationalisation as contemplated by Section 9-A read with Schedule IV item no 1 of the I.D. Act.

(24) WE shall refer to these provisions in greater detail later on while considering the question of legality of notice under Section 9-A of the I.D. Act. For the time being, it is sufficient to note that the question of violation of Section 33(1) of the I.D. Act has a direct nexus with the further question whether on 22/6/1982 when the impugned termination-order was passed, conciliation proceedings were pending before the authority or not.

(25) IN order to answer these questions, it is necessary to note Ss. (4) of Section 12 of the I.D. Act which reads as under: “(4) If no such settlement is arrived at, the conciliation officer shall, as soon as practicable after the close of the investigation, send to the appropriate government a full report setting forth the steps taken by him for ascertaining the facts and circumstances relating to the dispute and for bringing about a settlement thereof, together with a full statement of such facts and circumstances, and the reasons on account of which, in his opinion, a settlement could not be arrived at. A mere look at this provision shows that if the Conciliation Officer finds during conciliation proceedings that no settlement is arrived at between the disputing parties, then after closing the investigation he has, as soon as practicable, to send to the appropriate government a full report setting forth the steps taken by him for ascertaining the facts and circumstances

relating to the dispute and has also to mention all other details as required to be mentioned in the report under Section 12(4) of the I.D. Act.

(26) THE aforesaid statutory requirements leave no room for doubt that after closing the investigation and after having arrived at the conclusion that no settlement is possible between the parties, the Conciliation Officer has to spend some more time before submitting his detailed written report about failure of consideration for information and necessary action by the State government. In the very nature of things, therefore, such requirement will take at least a couple of days, if not more, for the conciliator after closing the investigation to enable him to send an appropriate report to the State government. It is, therefore, obvious that on 22/6/1982 when by 4.35 p.m. the Conciliation Officer declared that settlement was not possible between the parties and he closed the investigation, neither his statutory function did not come to an end nor did he become functus officio. His jurisdiction had to continue till he submitted his report as per Section 12(4) to the appropriate government. Even such preparation of the report and sending of the same from his end to the appropriate government would obviously have taken at least a few days after 22/6/1982. It must, therefore, be held that the conciliator remained in charge of the conciliation proceedings at least for a couple of days after 22/6/1982. It is, therefore, difficult to appreciate how within half an hour after the closing of investigation by the conciliator and before his getting even a breathing time to prepare his detailed written report about failure of conciliation to be sent to the government as per Section 12(4), the appellant could persuade itself to presume that conciliation proceedings had ended and, therefore, it was not required to follow the procedure of Section 33(1) and straightaway could pass the impugned order of retrenchment within 25 minutes of the closing of the investigation by the conciliator on the very same day. It is difficult to appreciate the reasoning of the Labour court that after the closer of investigation the conciliator became functus officio and the management could not have approached him for express written permission to pass the impugned order. It is easy to visualise that even on the same day i.e. on 22/6/1982 or even on the next day, before the conciliator had time even to start writing his report, such an express permission could have been asked for by the appellant as the conciliator by then could not be said to have washed his hand off the conciliation proceedings. He remained very much seized of these proceedings till at least the time the report left his end apart from the further question whether conciliation proceedings could be said to have continued till the report reached the State government. Thus, on the express language of Section 12(4) the conclusion is inevitable that closer of investigation by 4.35 p.m. on 22/6/1982 did not amount to termination of conciliation proceedings by that very time. The argument of learned counsel for the appellant was that closer of investigation automatically amounted to termination of conciliation proceedings. This argument proceeds on a wrong premise that closer of investigation by the conciliator is the same as closer of conciliation proceedings. The legislature while enacting Section 12(4) has deliberately not used the words closer of conciliation but, on the contrary, provided that after closer of investigation something more was required to be done by the conciliator as laid down under Section 12(4) before he can be said to have done away with conciliation proceedings earlier initiated by him. On this conclusion alone the decision rendered by the division bench of the High court that the impugned order of termination dated 22/6/1982 was issued by the appellant without following the procedure of Section 33(1) of the I.D. Act has to be sus-tained....'.

45. The authorities cited by Shri K. V. Nadkarny in the case of **Rajasthan State Road Transport Corporation and Another V/s Satya Prakash SCC 3292** would not come to the rescue of the Party II to overrule the observations and law laid down in the case of Jaipur Zilla (SUPRA). The law passed in the case of Jaipur Zilla is of the Constitution Bench of the Apex Court and the facts of the present case bring out clear violation of the provisions of Section 33(2)(b) of the Industrial Disputes Act.

46. The above contention of Shri K. V. Nadkarny is contrary to the records produced by the Party I/Workman. The evidence on record supports the stand taken by the Party I/Workman as regard to his illegal termination, in contravention to the provisions of Section 33. The same is duly supported by the ratio in the case of Lokmat Newspapers Pvt. Ltd. (Supra), as the provisions of Section 33(2)(b) have been settled in the case of Lokmat (Supra), the same being later in time and applicable to the facts of the present dispute than those citations relied upon by the Party II.

47. The management could not discard the evidence adduced by the Party I/Workman which clearly indicates his termination was not only on the basis of the inquiry which was not fair and proper and that the dismissal was ordered pending the conciliation proceedings sans the approval application under section 33.

48. Thus, this is a clear case of violation of mandatory provisions of Section 33(2)(b) of the Industrial Disputes Act, 1947. Hence, the ratio in the case of Jaipur Zilla would be squarely applicable to the present reference, wherein it is held "Amendments to Section 33 of the ID Act in the year 1956 were made at a time when no remedy under the Industrial Disputes Act was available to the individual workman to challenge the termination of his employment. At that time, the dismissal of an individual workman could form the subject-

matter of an industrial dispute only if it was espoused by the fellow workmen. In those days, dismissal of workmen who actively participated in raising an industrial dispute was not uncommon. In order to obviate this contingency, Section 33 imposed an obligation on the employer to seek approval or permission for the dismissal of any workman to be effected during the pendency of an industrial dispute. Apart from imposing an obligation on the employer to file such an application, in order to protect the workman against any termination which might be made without seeking approval or permission, Section 33-A was enacted creating a right in favour of the aggrieved workman to file a complaint which will be dealt with like adjudication of an industrial dispute. In other words, a right which was not available to the individual workman to approach the Labour Court or Tribunal for adjudication of a dispute relating to his dismissal was conferred by Section 33-A."

The Supreme Court in the case under review, has ruled that failure to apply for approval by the Employer would make the order of dismissal inoperative and that the workman may get wages and other benefits. It was also held that even if the application for approval is granted by the authority, still the aggrieved could make a complaint under Section 33-A challenging the approval. It is to be considered whether an interpretation can be placed on Section 33 to the effect that, even without a judicial declaration about the validity of the order of dismissal, as a result of the failure to seek approval or permission, the workman could straightaway proceed on the footing that the dismissal is invalid and inoperative and work out his rights for recovery of wages and other benefits. The case law placed before the Supreme Court does not support the present ruling. In order to dispel any doubt in the minds of the litigants and the lower courts, it may be clarified that no dismissed workman can claim the relief of reinstatement without a declaration by a competent court that the order of termination is not valid and no punitive order of termination be interfered without any technical grounds if such an order is otherwise justified on merits.

49. It is pertinent to note that in the case of Jaipur Zila (Supra) while referring to the case of **Strawboard Mfg. Co. v/s Govind**, the Hon'ble Apex Court observed that "*the application for approval was rejected by the Tribunal*". Dealing with the consequence of such rejection, the Supreme Court held that "*If the Tribunal does not approve of the action taken by the employer, the result would be that the action taken by him would fail and thereupon the workman would be deemed never to have been dismissed or discharged and would remain in the service of the employer. In such a case no specific provision as to reinstatement is necessary and by the very fact of the Tribunal not approving the action of the employer, the dismissal or discharge of the workman would be of no effect and the workman concerned would continue to be in service as if there never was any dismissal or discharge by the employer.*"

50. The Party I/Workman thus have successfully discharged his burden to prove that the domestic enquiry held against him was not fair and proper, same being in violation of provision of Section 33 of the Industrial Disputes Act, 1947. Consequently, the charges of unauthorized absenteeism cannot be said to be proved again for the reason that there has been violations of mandatory provisions of the Industrial Disputes Act. The act of violations of provisions of Section 33(2)(a)(b) of the Industrial Disputes Act by the Party II/Company since go to the root of the matter, therefore, the entire enquiry seems to be void ab initio so also the Order of Dismissal of the Party I/Workman becomes illegal and unjustified. Hence, the Issue No. 2, 3 and 4 stands answered in the affirmative.

51. The Party I/Workman has been able to show that the Employer/Party II has violated the mandatory provisions of the Industrial Disputes Act, 1947. Thus, this is a fit case where the ratio laid down in the case of Jaipur Zilla squarely applies, leaving no room for any further prolonged litigation but to put a full stop to the entire reference by applying the ratio laid down in the case of Jaipur Zilla (Supra).

52. Considering this observation, this Tribunal is of the opinion that no further purpose would be served if this Tribunal proceeds to decide only Issue No.2 and keeps the reference alive for holding enquiry on the remaining issues when the termination of the Party I/Workman itself is illegal and void, the same being in violation of provisions of Section 33(2)(a)(b) of the Industrial Disputes Act, 1947.

Hence the following Order:

ORDER

- i. The reference stands allowed.
 - a. The Party II/Management is hereby directed to reinstate the Workman into their services without the payment of back wages by posting him to the place of his employment where he was working prior to his alleged transfer on the same post with continuity of service.

OR

- b. In the alternative, the Party II/Management is hereby directed to pay the back wages and other legal dues to the Workman from the date of his termination till the date of passing of this Order and shall pay an amount of Rs. 5,00,000/- as damages towards full and final payment of dues for loss of employment and hardship caused to him on account of illegal termination of his services.

- ii. Inform the Government accordingly.

Vijayalaxmi R. Shivolkar, Presiding Officer, Industrial Tribunal & Labour Court.

Panaji.

◆◆◆

Department of Law & Judiciary

Law (Establishment) Division

—
Order

No. 1/2/2022/LD(Estt.)/769

Date : 24-Mar-2026

Government of Goa is pleased to appoint Adv. Neehal S. Vernekar, as Government Lawyer on behalf of State of Goa to appear and defend the interest of the State Government in the matters before the Hon'ble National Green Tribunal, Western Zone Bench, Pune with immediate effect and until further orders.

He shall be paid fees as per the existing terms and conditions laid down by the Government vide Order No. 1/19/2015/LD(Estt.)/1515 dated 05-09-2023, as applicable to Government Advocates/Additional Government Advocates and as amended from time to time, on submission of bills (in duplicate) alongwith the attendance certificate, issued by the Registrar of the Hon'ble National Green Tribunal, Western Zone Bench, Pune. He shall comply with the instructions contained in the Government Circular No. 4-43-99/LD dated 04-05-2000. He will appear in those matters, which would be allotted to him by the Ld. Advocate General of the State of Goa.

By order and in the name of the Governor of Goa.

Gajanan X. Bhonsle, Under Secretary (Estt.), Law.

Porvorim.

◆◆◆

Department of Personnel

—
Order

No. 7/2/2022-PER/3022

Date : 01-Oct-2025

Shri Vinayak Kambli, Deputy Director (Training), Directorate of Skill Development & Entrepreneurship shall hold the charge of the Director of Skill Development & Entrepreneurship, with immediate effect in addition to his own duties.

By order and in the name of the Governor of Goa.

Durga Kinlekar, Under Secretary (Personnel-II).

Porvorim.

—
Order

No. 7/2/2020-PER/3583

Date : 26-Nov-2025

Dr. Nitin Naik, Deputy Director (EPID), Directorate of Animal Husbandry and Veterinary Services shall hold the charge of Director of Animal Husbandry and Veterinary Services with immediate effect in addition to his own duties.

By order and in the name of the Governor of Goa.

Durga Kinlekar, Under Secretary (Personnel-II).

Porvorim.

Order

No. 7/13/2014-PER/781

Date : 13-Mar-2026

The Governor of Goa is pleased to order transfer and posting of Ms. Urvashi Jain, IFS, Assistant Conservator of Forests, Wildlife & Eco-Tourism (North) as Deputy Conservator of Forest, Wildlife & Eco-tourism, South, with additional charge of Deputy Conservator of Forest, Wildlife & Eco-tourism, Kushavati District, with immediate effect.

By order and in the name of the Governor of Goa.

Raghuraj A. Faldesai, Under Secretary (Personnel-I).

Porvorim.

**Department of Power**

Office of the Chief Electrical Engineer

**Order**

No. CEE/Elect/Tech/SDA-18/2025-26/243

Date : 23-Mar-2026

Subject: Constitution of “State Energy Conservation and Sustainable Building Code Compliant Technical Grievances Redressal Committee”.

The State Energy Conservation and Sustainable Building Code Compliant Technical Grievances Redressal Committee has been constituted by the Government of Goa vide No. CEE/Elect/Tech/SDA-18/2025-26/164 dated 23-12-2025 for addressing the grievances raised during implementation of the Energy Conservation and Sustainable Building Code (ECSBC) in the State. This Committee consists of the below mentioned members:

1. Chief Town Planner, Town and Country Planning (TCP).
2. Chief Architect, Public Works Department (PWD).
3. Chief Project Officer, Goa State Urban Development Agency (GSUDA).
4. Chief Electrical Engineer, Electricity Department, Goa.

The Committee will be responsible to:

1. Hear grievance filed by the owner of a Code compliant building within the specified time period given by the authority having jurisdiction.
2. Make recommendations to the authority having jurisdiction to reconsider such issues or for implementation by the authority having jurisdiction, as the case may be.

The committee shall commence functioning with immediate effect.

This issues with the approval of the Government vide reference No. 5087/F dated 31-12-2025.

Stephen Fernandes, Chief Electrical Engineer & ex officio Additional Secretary.

Panaji.

**Department of Public Health****Order**

No. 4/02/2026-II/PHD/789

Date : 24-Mar-2026

On recommendation of the Goa Public Service Commission as conveyed vide their No. COM/II/11/30(2)/2026/492 dated 27-02-2026, Government is pleased to promote Dr. (Mrs.) Fatima Maria D'souza, Associate Professor to the post of Professor in the Department of Anatomy (Group “A” Gazetted) in Goa

Medical College and Hospital, Bambolim on regular basis in the Level 13 of Pay Matrix (PB-4; Rs. 37400-67000/- + GP. Rs. 8700/-) and other allowance to be fixed as per rules with immediate effect.

The promotion is made against the vacancy occurred due to retirement of Dr. Prashant Natekar from the post of Professor in the Department of Anatomy in Goa Medical College on 28-08-2024.

By order and in the name of the Governor of Goa.

Sitaram G. Sawal, Under Secretary (Health-I).

Porvorim.

Order

No. 4/01/2026-II/PHD/810

Date : 25-Mar-2026

On recommendation of the Goa Public Service Commission as conveyed vide their No. COM/II/11/30(1)/2026/491 dated 27-02-2026, Government is pleased to promote Dr. Francisco Couto, Associate Professor to the post of Professor in the Department of Pathology (Group “A” Gazetted) in Goa Medical College and Hospital, Bambolim on regular basis in the Level 13 of Pay Matrix (PB-4; Rs. 37400-67000/- + GP. Rs. 8700/-) and other allowance to be fixed as per rules with immediate effect.

The promotion is made against the vacancy occurred due to retirement of Dr. R.G. Wiseman Pinto from the post of Professor in the Department of Pathology in Goa Medical College on 31-08-2024.

By order and in the name of the Governor of Goa.

Sitaram G. Sawal, Under Secretary (Health-I).

Porvorim.

Department of Revenue

Notification

No. 28/4/3/2025/RD-I/422

Date : 27-Mar-2026

In exercise of the powers conferred by Clause (a) of Section 35 of the Goa Land Revenue Code, 1968 (Goa Act No. 9 of 1969) (hereinafter referred to as the “said Code”), the Government of Goa, being of the opinion that it is necessary in the public interest for the purpose of carrying out the objects of the said Code, hereby exempts the land admeasuring an area of 2,918 sq. mts., surveyed under Survey No. 33 sub-division No. 3-A of Loutolim Village of Salcete Taluka, District South Goa, State of Goa, from the payment of fees amounting to Rs. 4,08,520/- (Rupees Four lakhs, eight thousand, five hundred and twenty only) payable under clause (ii) of sub-section (6) of Section 32, and penalty amounting to Rs. 5,12,400/- (Rupees Five lakhs, twelve thousand and four hundred only) payable under Section 33, of the said Code subject to the condition that the said land shall be used exclusively for the purpose of construction of a new building for establishing a centre for upliftment and education of women and children belonging to economically weaker sections.

This Notification shall come into force on the date of its publication in the Official Gazette.

By order and in the name of the Governor of Goa.

Vrushika Kauthankar, Under Secretary (Revenue-I).

Porvorim.

Notification

No. 28/4/3/2025/RD-I/423

Date : 27-Mar-2026

In exercise of the powers conferred by the second proviso to clause (ii) of sub-section (6) of Section 32 of the Goa Land Revenue Code, 1968 (Goa Act No. 9 of 1969), the Government of Goa hereby exempts Pilar

Sisters Association, a society registered under the Societies Registration Act, 1860 (Act No. 21 of 1860) before the office of Inspector General of Societies, South Goa, Margao under No. 2/Goa/89 dated 18-01-1989, from the payment of fees amounting to Rs. 2,45,280/- (Rupees two lakhs, forty-five thousand, two hundred and eighty only) payable under the said Code for conversion of the land admeasuring an area of 1,752 sq. mts., surveyed under Survey No. 33 sub-division 3-B of Loutolim Village of Salcete Taluka, District South Goa, State of Goa, subject to the condition that the said land shall be used exclusively for the purpose of construction of a new building for establishing a centre for upliftment and education of women and children belonging to economically weaker sections.

By order and in the name of the Governor of Goa.

Vrushika Kauthankar, Under Secretary (Revenue-I).

Porvorim.



Department of Town and Country Planning

Notification

No. 36/18/39A/Notification (27F)/TCP/2026/211

Date : 01-Apr-2026

Whereas, the Town and Country Planning Department of the Government of Goa received applications under sub-section (1) of Section 39A of the Goa Town and Country Planning Act, 1974 (Act 21 of 1975) for change of zones in the Regional Plan for Goa 2021 in respect of the plots of land as specified in detail in column Nos. (2) to (7) of the Table below (hereinafter referred to as “the said Proposals”);

TABLE

Sr. No.	Name of the Applicant	Survey No./ Sub Division No./P.T. Sheet No./Chalta No.	Name of Village and Taluka	Published land use as per RPG-2021/ODP (Total Area) in m2	Proposed land use	Area proposed in sq. mts.	Decision of the Government
(1)	(2)	(3)	(4)	(5)	(6)	(7)	(8)
1.	Nishtha Jain	8/0 (8/1) Plot No. B	Morjim, Pernem	Orchard with No Development Slope Total Area (1000)	Settlement Zone	1000	Approved for change of zone an area of 1000m2 from Orchard with No Development Slope to Settlement zone being within permissible gradient.
2.	Nina Figueiredo	424/1-BG (Part)	Dhargalim, Pernem	Natural Cover overlapped with Irrigation Command Area Total Area (515)	Settlement Zone	500	Approved for change of zone an area of 500m2 from Natural Cover overlapped with Irrigation Command Area to Settlement zone with Irrigation Command Area subject to that secondary development shall be strictly permitted with NOC from Water Resources Department.

3.	Nitesh D. Raut	419/1-D	Corgao, Pernem	Orchard Total Area (295)	Settlement Zone	295	Approved for change of zone an area of 295m2 from Orchard to Settlement Zone.
4.	Gangaram Ramdas Mahato, Sona Kumari Mahato	133/3-R	Revora, Bardez	Natural Cover Total Area (260)	Settlement Zone	260	Approved for change of zone an area of 260m2 from Natural Cover to Settlement Zone.
5.	M/s. Ratrico Developers Private Limited, Rep. by Mr. Chandra Pal Singh & Mr. Sanjay Sharma	203/12-A (Part)	Pilerne, Bardez	Partly Settlement (710m2), Partly Orchard with No Development Slope (130m2) Total Area (840)	Settlement zone	130	Approved for change of zone an area of 130m2 from Orchard with No Development Slope to Settlement zone being within permissible gradient.
6.	Ashvagandha Betelnuts Private Limited Director Mr. Vivek Shah	260/5 (Part)	Calangute, Bardez	Partly Natural Cover (12m2), Partly Natural Cover with No Development Slope (6513m2), Part area is within Heritage Landscape. Part property is falling within 500mts from HTL. Total Area (6525)	Settlement Zone	6525	Approved for change of zone an area of 12m2 from Natural Cover to Settlement Zone and an area of 5418m2 from Natural Cover with No Development Slope to Settlement Zone being within permissible gradient.

And whereas, in terms of sub-rule (1) of Rule 4 of the Goa Town and Country Planning (Change of zone of land in the Regional Plan or the Outline Development Plan) Rules, 2024 (hereinafter referred to as the “said Rules”), the Town and Country Planning Department after scrutinizing the said proposals placed such proposals alongwith its scrutiny reports before the Goa Town and Country Planning Board for its recommendations/approval/decision;

And whereas, the Goa Town and Country Planning Board approved the said proposals as specified in column No. 8 of the above Table;

And whereas, notices as required by sub-rule (2) of Rule 4 of the said Rules were published,—

- (i) Vide Notification No. 36/18/39A/Notification(32)/TCP/2025/512 dated 24-09-2025, published in the Official Gazette, Series III No. 26 dated 25-09-2025 (as regards proposal at Sr. No. 1);
- (ii) Vide Notification No. 36/18/39A/Notification (19)/TCP/2025/91 dated 25-03-2025, published in the Official Gazette, Series III No. 52 dated 01-04-2025 (as regards proposal at Sr. No. 2);
- (iii) Vide Notification No. 36/18/39A/Notification (36)/TCP/2025/646 dated 29-10-2025, published in the Official Gazette, Series III No. 31 dated 30-10-2025 (as regards proposal at Sr. No. 3);
- (iv) Vide Notification No. 36/18/39A/Notification (38)/TCP/2025/704 dated 12-11-2025, published in the Official Gazette, Series III No. 33 dated 13-11-2025 (as regards proposal at Sr. No. 4 & 5);
- (v) Vide Notification No. 36/18/39A/Notification (41)/TCP/2025/767 dated 31-12-2025, published in the Official Gazette, Series III No. 40 dated 01-01-2026 (as regards proposal at Sr. No. 6); and suggestions were invited from the public within a period of thirty days from the date of publication to the said Notifications in the Official Gazette.

And whereas, suggestions received from public were placed before the Goa Town and Country Planning Board in terms of sub-rule (3) of Rule 4 for its recommendation/approval and the Goa Town and Country Planning Board after due consideration of the suggestions received from the public recommended the proposals

for change of zone as regards to Sr. No. 1 in its 223rd Meeting held on 06-11-2025, Sr. No. 2 & 3 in its 226th Meeting held on 16-01-2026, Sr. No. 4 in its 228th Meeting held on 18-02-2026, Sr. No. 5 in its 227th Meeting held on 02-02-2026 and Sr. No. 6 in its 229th Meeting held on 12-03-2026 and directed to take further action as per sub-rule (4) of Rule 4 of the said Rules;

And whereas, as required by sub-rule (4) of Rule 4 of the said Rules, the recommendation/ approval/decision of the Goa Town and Country Planning Board along with the said proposals were placed before the Government for its decision and the Government has approved the same;

Now, therefore, in view of the recommendation of the Goa Town and Country Planning Board being approved by the Government and in exercise of the powers conferred by Section 39A of the Goa Town and Country Planning Act, 1974 (Act 21 of 1975) read with sub-rule (5) of Rule 4 of the Goa Town and Country Planning (Change of zone of land in the Regional Plan or the Outline Development Plan) Rules, 2024, the Regional Plan and the Outline Development Plan is hereby altered and modified as specified in Column No. (8) of above Table and as directed by the Government for carrying out change of zone of land in respect of the plots of land as specified in detail in column Nos. (2) to (7) of above Table.

The alteration and modification of the Regional Plan and the Outline Development Plan as notified in this Notification shall be subject to the outcome of the PIL Writ Petition Nos. 53 of 2024 and 54 of 2024 which are pending final disposal before the Hon'ble High Court of Bombay at Goa.

Vertika Dagur, Chief Town Planner (Planning).

Panaji.